

`{Variable}` input · `[Computable]` act / derived · `«if ... end if»` condition · ~~`struck`~~ excluded · word-for-word dissection; the law is reconstructable from the substrate

§171 · Breach of the duty of care or upbringing

BreachOfDutyOfCareOrUpbringing · provenance StGB 171 · single paragraph · re-encoded v3

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
Any person who grossly violates their duty of care or upbringing towards a person under the age of sixteen and thereby exposes the person in their care to the risk of suffering significant harm to their physical or mental development, leading a criminal lifestyle or engaging in prostitution shall be punished with imprisonment for up to three years or a fine.	<code>«if BreachOfDutyOfCareOrUpbringing is true»{Actor} «if {Violates} is true»{Grossly} violates their «if {DutyOfCare} is true»duty of care«end if» «if {Upbringing} is true»or upbringing«end if»«end if» towards {Person} «if [PersonUnder16] is true»under the age of {AgeLimit16} «end if» and thereby «if {Exposes} is true»exposes {Person} «if {InCare} is true»in their care «end if» to the {Risk} «end if» of «if {SuffersHarm} is true}suffering {Significant} harm to {Person}'s «if {PhysicalDevelopment} is true»physical development«end if» «if {MentalDevelopment} is true»or mental development«end if»«end if» «if {Leads} is true», leading {CriminalLifestyle} «end if» «if {Engages} is true»or engaging in {Prostitution} «end if» shall be punished with imprisonment for up to three years or a fine.«end if»</code>

ANNEXES

COMPUTABLES

<code>[GrossViolation] = Violates is true and Grossly is true and (DutyOfCare is true or Upbringing is true)</code>
<code>[PersonUnder16] = PersonAge < AgeLimit16</code>
<code>[HarmRisk] = SuffersHarm is true and Significant is true and (PhysicalDevelopment is true or MentalDevelopment is true)</code>
<code>[RiskOutcome] = HarmRisk is true or Leads is true or Engages is true</code>
<code>[Endangerment] = Exposes is true and InCare is true and RiskOutcome is true</code>
<code>[BreachOfDutyOfCareOrUpbringing] = GrossViolation is true and PersonUnder16 is true and Endangerment is true</code>

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BCU-R01	ACT	Actor		Violates is true
BCU-R02	ACT	Actor		Exposes is true
BCU-R03	ACT	Actor		SuffersHarm is true
BCU-R04	ACT	Actor		Leads is true
BCU-R05	ACT	Actor		Engages is true
BCU-R06	CONDITION	None		InCare is true
BCU-R07	CONDITION	None		Grossly is true
BCU-R08	CONDITION	None		Significant is true
BCU-R09	CONDITION	None		DutyOfCare is true
BCU-R10	CONDITION	None		Upbringing is true
BCU-R11	CONDITION	None		PhysicalDevelopment is true
BCU-R12	CONDITION	None		MentalDevelopment is true
BCU-R90	CONDITION	None	the person is under the age of sixteen	PersonUnder16 is true
BCU-P0	PROHIBITION	Actor	not realise	not BreachOfDutyOfCareOrUpbringing

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	<code>{Actor}</code>	–	in scope
{Actor} violates a duty	Merkmal	<code>{Violates}</code>	BCU-R01	is true
{Actor} exposes {Person} to a risk	Merkmal	<code>{Exposes}</code>	BCU-R02	is true
{Person} suffers harm	Merkmal	<code>{SuffersHarm}</code>	BCU-R03	is true
{Person} leads a way of life	Merkmal	<code>{Leads}</code>	BCU-R04	is true
{Person} engages in an activity	Merkmal	<code>{Engages}</code>	BCU-R05	is true
{Person} is in {Actor}'s care	Merkmal	<code>{InCare}</code>	BCU-R06	is true
the violation is gross	Merkmal	<code>{Grossly}</code>	BCU-R07	is true
the harm is significant	Merkmal	<code>{Significant}</code>	BCU-R08	is true
the duty of care is at issue	Merkmal	<code>{DutyOfCare}</code>	BCU-R09	is true

the duty of upbringing is at issue	Merkmal	{Upbringing}	BCU-R10	is true
the harm is to {Person}'s physical development	Merkmal	{PhysicalDevelopment}	BCU-R11	is true
the harm is to {Person}'s mental development	Merkmal	{MentalDevelopment}	BCU-R12	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{AgeLimit16}	Number	–	Session	sixteen years
{CriminalLifestyle}	Party	–	Session	a criminal lifestyle
{DutyOfCare}	Boolean	true / false / unknown	Session	the duty of care is at issue
{Engages}	Boolean	true / false / unknown	Session	{Person} engages in an activity
{Exposes}	Boolean	true / false / unknown	Session	{Actor} exposes {Person} to a risk
{Grossly}	Boolean	true / false / unknown	Session	the violation is gross
{InCare}	Boolean	true / false / unknown	Session	{Person} is in {Actor}'s care
{Leads}	Boolean	true / false / unknown	Session	{Person} leads a way of life
{MentalDevelopment}	Boolean	true / false / unknown	Session	the harm is to {Person}'s mental development
{Person}	Party	–	Session	the protected person
{PersonAge}	Number	–	Session	the age of {Person} in years
{PhysicalDevelopment}	Boolean	true / false / unknown	Session	the harm is to {Person}'s physical development
{Prostitution}	Party	–	Session	prostitution
{Risk}	Party	–	Session	a risk
{Significant}	Boolean	true / false / unknown	Session	the harm is significant
{SuffersHarm}	Boolean	true / false / unknown	Session	{Person} suffers harm
{Upbringing}	Boolean	true / false / unknown	Session	the duty of upbringing is at issue
{Violates}	Boolean	true / false / unknown	Session	{Actor} violates a duty

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} violates a duty and the violation is gross and (the duty of care is at issue or the duty of upbringing is at issue)) and (PersonAge < AgeLimit16) and ({Actor} exposes {Person} to a risk and {Person} is in {Actor}'s care and (({Person} suffers harm and the harm is significant and (the harm is to {Person}'s physical development or the harm is to {Person}'s mental development)) or {Person} leads a way of life or {Person} engages in an activity)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[GrossViolation]	Violates, Grossly, DutyOfCare, Upbringing	false	Recomputes when any input changes; propagates into the composite.
[PersonUnder16]	PersonAge, AgeLimit16	false	Recomputes when any input changes; propagates into the composite.
[HarmRisk]	SuffersHarm, Significant, PhysicalDevelopment, MentalDevelopment	false	Recomputes when any input changes; propagates into the composite.
[RiskOutcome]	HarmRisk, Leads, Engages	false	Recomputes when any input changes; propagates into the composite.
[Endangerment]	Exposes, InCare, RiskOutcome	false	Recomputes when any input changes; propagates into the composite.
[BreachOfDutyOfCareOrUpbringing]	GrossViolation, PersonUnder16, Endangerment	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BCU-P0)	[BreachOfDutyOfCareOrUpbringing]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {AgeLimit16}
- └ {CriminalLifestyle}
- └ {DutyOfCare}
- └ {Engages}
- └ {Exposes}
- └ {Grossly}
- └ {InCare}
- └ {Leads}
- └ {MentalDevelopment}
- └ {Person}
- └ {PersonAge}
- └ {PhysicalDevelopment}
- └ {Prostitution}
- └ {Risk}
- └ {Significant}
- └ {SuffersHarm}
- └ {Upbringing}
- └ {Violates}

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PHASE 2: evaluate act / intermediate computables
└─ [GrossViolation] = Violates is true and Grossly is true and (DutyOfCare is true or Upbringing is true)
└─ [PersonUnder16] = PersonAge < AgeLimit16
└─ [HarmRisk] = SuffersHarm is true and Significant is true and (PhysicalDevelopment is true or MentalDevelopment is true)
└─ [RiskOutcome] = HarmRisk is true or Leads is true or Engages is true
└─ [Endangerment] = Exposes is true and InCare is true and RiskOutcome is true
↓
PHASE 3: evaluate the objective conditions
└─ [BreachOfDutyOfCareOrUpbringing] = GrossViolation is true and PersonUnder16 is true and Endangerment is true
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VERDICT (PrimeRule)
└─ [BreachOfDutyOfCareOrUpbringing] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└─ [BreachOfDutyOfCareOrUpbringing] is false → not realised
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RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [BreachOfDutyOfCareOrUpbringing] depends on [GrossViolation], [PersonUnder16], [HarmRisk], [RiskOutcome], [Endangerment]; none refer back to [BreachOfDutyOfCareOrUpbringing]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{AgeLimit16}	Element/Datum: sixteen years.?	Number
Q3	Session	{CriminalLifestyle}	Element/Datum: a criminal lifestyle.?	Party
Q4	Session	{DutyOfCare}	Element/Datum: the duty of care is at issue.?	Boolean
Q5	Session	{Engages}	Element/Datum: {Person} engages in an activity.?	Boolean
Q6	Session	{Exposes}	Element/Datum: {Actor} exposes {Person} to a risk.?	Boolean
Q7	Session	{Grossly}	Element/Datum: the violation is gross.?	Boolean
Q8	Session	{InCare}	Element/Datum: {Person} is in {Actor}'s care.?	Boolean
Q9	Session	{Leads}	Element/Datum: {Person} leads a way of life.?	Boolean
Q10	Session	{MentalDevelopment}	Element/Datum: the harm is to {Person}'s mental development.?	Boolean
Q11	Session	{Person}	Element/Datum: the protected person.?	Party
Q12	Session	{PersonAge}	Element/Datum: the age of {Person} in years.?	Number
Q13	Session	{PhysicalDevelopment}	Element/Datum: the harm is to {Person}'s physical development.?	Boolean
Q14	Session	{Prostitution}	Element/Datum: prostitution.?	Party
Q15	Session	{Risk}	Element/Datum: a risk.?	Party
Q16	Session	{Significant}	Element/Datum: the harm is significant.?	Boolean
Q17	Session	{SuffersHarm}	Element/Datum: {Person} suffers harm.?	Boolean
Q18	Session	{Upbringing}	Element/Datum: the duty of upbringing is at issue.?	Boolean
Q19	Session	{Violates}	Element/Datum: {Actor} violates a duty.?	Boolean

FLAGS

- VERB AND OBJECT SEPARATED {Violates} is the span; the duty objects sit inside it (rule 1).
- COORDINATED OBJECTS CARRY LOGIC {DutyOfCare} or {Upbringing}, and {PhysicalDevelopment} or {MentalDevelopment}, are Boolean object variables whose disjunction lives in the GrossViolation and HarmRisk computables. No connective is decorative (rule 10).
- SINGLE OBJECTS ARE REFERENCES {Risk}, {CriminalLifestyle}, {Prostitution}, {Person} stand alone with no coordination, so they remain reference variables (rule 3).
- QUALIFIERS AS VARIABLES {Grossly} and {Significant} gate the violation and the harm in the logic (rule 4).
- NESTED RELATIONAL RULE “In their care” is {InCare} nested inside the {Exposes} span (rule 5).
- ONE SPAN PER VERB, CONNECTIVES BOUND Suffering harm is a single {SuffersHarm} span; the outcome connectives are folded into the {Leads} and {Engages} spans, the disjunction carried by RiskOutcome (rule 2, 7).
- STRIKE Penalty struck in the markup only (rule 9).

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
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(1) Any person who has sexual intercourse with a biological descendant shall be punished with imprisonment for up to three years or a fine. (2) Any person who has sexual intercourse with a biological ascendant shall be punished with imprisonment for up to two years or a fine; this shall also apply where the family relationship has ceased to exist. Biological siblings who have sexual intercourse with one another shall likewise be punished. (3) Descendants and siblings shall not be punished under this provision if they were under the age of eighteen at the time of the offence.

«if [Leg1] is true or [Leg2] is true or [LegSiblings] is true and not [AgeExemption] is true»(1) {Actor} «if {HasSexualIntercourse} is true»has sexual intercourse with «end if» «if {IsBiologicalDescendant} is true»a {BiologicalDescendant} «end if» ~~shall be punished with imprisonment for up to three years or a fine.~~ (2) {Actor} «if {HasSexualIntercourse} is true»has sexual intercourse with «end if» «if {IsBiologicalAscendant} is true»a {BiologicalAscendant}«if {FamilyRelationshipCeased} is true», including where the

family relationship has ceased to exist «end if»«end if» ~~shall be punished with imprisonment for up to two years or a fine.~~ «if {AreBiologicalSiblings} is true»{Actor} and a {Sibling} are biological siblings «end if» who «if {HasSexualIntercourse} is true»have sexual intercourse with one another «end if» ~~shall likewise be punished.~~ «end if» (3) «if {ExemptDescendant} is true»a descendant «end if» «if {ExemptSibling} is true»or a sibling «end if» who was «if {ActorUnder18} is true»under the age of {AgeLimit18} «end if» at the time of the offence ~~is not punished under this provision.~~

ANNEXES

COMPUTABLES

[Leg2] = HasSexualIntercourse is true and IsBiologicalAscendant is true
[ActorUnder18] = ActorAge < AgeLimit18
[ExemptDescendant] = IsBiologicalAscendant is true and ActorUnder18 is true
[ExemptSibling] = AreBiologicalSiblings is true and ActorUnder18 is true
[AgeExemption] = ExemptDescendant is true or ExemptSibling is true
[Leg1] = HasSexualIntercourse is true and IsBiologicalDescendant is true
[LegSiblings] = HasSexualIntercourse is true and AreBiologicalSiblings is true
[SexualIntercourseBetweenRelatives] = (Leg1 is true or Leg2 is true or LegSiblings is true) and not AgeExemption

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SIR-R01	ACT	Actor		HasSexualIntercourse is true
SIR-R02	CONDITION	None	biological descendant of the actor	IsBiologicalDescendant is true
SIR-R03	CONDITION	None	biological ascendant of the actor	IsBiologicalAscendant is true
SIR-R04	CONDITION	None	being biological siblings	AreBiologicalSiblings is true
SIR-R05	CONDITION	None	the family relationship has ceased to exist (non-defeating)	FamilyRelationshipCeased is true
SIR-R90	CONDITION	None	the actor was under eighteen at the time of the offence	ActorUnder18 is true
SIR-R91	CONDITION	None	descendant offender exemption	ExemptDescendant is true
SIR-R92	CONDITION	None	sibling offender exemption	ExemptSibling is true
SIR-P0	PROHIBITION	Actor	not realise	not SexualIntercourseBetweenRelatives

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
has sexual intercourse	Merkmal (verb, all legs)	{HasSexualIntercourse}	SIR-R01	is true
with a biological descendant	status, leg 1 (actor is the ascendant)	{IsBiologicalDescendant}	SIR-R02	is true
with a biological ascendant	status, leg 2 (actor is the descendant)	{IsBiologicalAscendant}	SIR-R03	is true
biological siblings	status, leg 3	{AreBiologicalSiblings}	SIR-R04	is true
relationship has ceased	clarifier, nested in leg 2 (non-defeating)	{FamilyRelationshipCeased}	SIR-R05	does not defeat leg 2
descendant under eighteen	exemption class	[ExemptDescendant]	SIR-R91	negates liability
sibling under eighteen	exemption class	[ExemptSibling]	SIR-R92	negates liability
ascendant offender	not exempt	–	–	liable regardless of age

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ActorAge}	Number	–	Session	the age of {Actor} in years
{AgeLimit18}	Number	–	Session	eighteen years
{AreBiologicalSiblings}	Boolean	true / false / unknown	Session	the counterparty is {Actor}'s biological sibling
{BiologicalAscendant}	Party	–	Session	a biological ascendant of {Actor}
{BiologicalDescendant}	Party	–	Session	a biological descendant of {Actor}
{FamilyRelationshipCeased}	Boolean	true / false / unknown	Session	the family relationship has ceased to exist
{HasSexualIntercourse}	Boolean	true / false / unknown	Session	{Actor} has sexual intercourse
{IsBiologicalAscendant}	Boolean	true / false / unknown	Session	the counterparty is {Actor}'s biological ascendant
{IsBiologicalDescendant}	Boolean	true / false / unknown	Session	the counterparty is {Actor}'s biological descendant
{Sibling}	Party	–	Session	a biological sibling of {Actor}

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} has sexual intercourse and the counterparty is {Actor}'s biological descendant) or ({Actor} has sexual intercourse and the counterparty is {Actor}'s biological ascendant) or ({Actor} has sexual intercourse and the counterparty is {Actor}'s biological sibling)) and not AgeExemption.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Leg2]	HasSexualIntercourse, IsBiologicalAscendant	false	Recomputes when any input changes; propagates into the composite.
[ActorUnder18]	ActorAge, AgeLimit18	false	Recomputes when any input changes; propagates into the composite.
[ExemptDescendant]	IsBiologicalAscendant, ActorUnder18	false	Recomputes when any input changes; propagates into the composite.
[ExemptSibling]	AreBiologicalSiblings, ActorUnder18	false	Recomputes when any input changes; propagates into the composite.
[AgeExemption]	ExemptDescendant, ExemptSibling	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	HasSexualIntercourse, IsBiologicalDescendant	false	Recomputes when any input changes; propagates into the composite.
[LegSiblings]	HasSexualIntercourse, AreBiologicalSiblings	false	Recomputes when any input changes; propagates into the composite.
[SexualIntercourseBetweenRelatives]	Leg1, Leg2, LegSiblings, AgeExemption	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SIR-P0)	[SexualIntercourseBetweenRelatives]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- {Actor}
- {ActorAge}
- {AgeLimit18}
- {AreBiologicalSiblings}
- {BiologicalAscendant}
- {BiologicalDescendant}
- {FamilyRelationshipCeased}
- {HasSexualIntercourse}
- {IsBiologicalAscendant}
- {IsBiologicalDescendant}
- {Sibling}

↓

PHASE 2: evaluate act / intermediate computables

- [Leg2] = HasSexualIntercourse is true and IsBiologicalAscendant is true
- [ActorUnder18] = ActorAge < AgeLimit18
- [ExemptDescendant] = IsBiologicalAscendant is true and ActorUnder18 is true
- [ExemptSibling] = AreBiologicalSiblings is true and ActorUnder18 is true
- [AgeExemption] = ExemptDescendant is true or ExemptSibling is true
- [Leg1] = HasSexualIntercourse is true and IsBiologicalDescendant is true
- [LegSiblings] = HasSexualIntercourse is true and AreBiologicalSiblings is true

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PHASE 3: evaluate the objective conditions

- [SexualIntercourseBetweenRelatives] = (Leg1 is true or Leg2 is true or LegSiblings is true) and not AgeExemption

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VERDICT (PrimeRule)

- [SexualIntercourseBetweenRelatives] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- [SexualIntercourseBetweenRelatives] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [SexualIntercourseBetweenRelatives] depends on [Leg2], [ActorUnder18], [ExemptDescendant], [ExemptSibling], [AgeExemption], [Leg1], [LegSiblings]; none refer back to [SexualIntercourseBetweenRelatives]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ActorAge}	Element/Datum: the age of {Actor} in years.?	Number
Q3	Session	{AgeLimit18}	Element/Datum: eighteen years.?	Number
Q4	Session	{AreBiologicalSiblings}	Element/Datum: the counterparty is {Actor}'s biological sibling.?	Boolean
Q5	Session	{BiologicalAscendant}	Element/Datum: a biological ascendant of {Actor}.?	Party
Q6	Session	{BiologicalDescendant}	Element/Datum: a biological descendant of {Actor}.?	Party
Q7	Session	{FamilyRelationshipCeased}	Element/Datum: the family relationship has ceased to exist.?	Boolean
Q8	Session	{HasSexualIntercourse}	Element/Datum: {Actor} has sexual intercourse.?	Boolean
Q9	Session	{IsBiologicalAscendant}	Element/Datum: the counterparty is {Actor}'s biological ascendant.?	Boolean
Q10	Session	{IsBiologicalDescendant}	Element/Datum: the counterparty is {Actor}'s biological descendant.?	Boolean
Q11	Session	{Sibling}	Element/Datum: a biological sibling of {Actor}.?	Party

COMPOSITE

Legs feed the composite directly with the exemption lifted to a top-level negation: (Leg1 or Leg2 or LegSiblings) and not AgeExemption. No intermediate definition computable.

LEGS ARE THE ALTERNATIVES

Paragraphs 1, 2 and the siblings sentence are the three leg sub-spans named in the top span, so the disjunction is structural and machine-readable rather than prose (rule 7).

CESSATION LINKED

“this also applies where the family relationship has ceased” is nested inside the ascendant-status span of leg 2 as a non-defeating clarifier, not floating (rule 7).

EXEMPTION DISTINGUISHES THE CLASSES

The exemption protects a descendant offender (**{IsBiologicalAscendant}**), i.e. the actor is the descendant of an ascendant counterparty) and a sibling offender, each under eighteen. The ascendant offender (leg 1, **{IsBiologicalDescendant}**) is deliberately outside the exemption and remains liable regardless of age (rule 8).

STRIKES

Penalties in (1) and (2), “shall likewise be punished”, and “is not punished under this provision” in (3) are struck in the markup only (rule 9, the last two per the annotations).

§174 · Sexual abuse of persons under one's care	
AbuseOfPersonsUnderCare · provenance StGB 174 · full section (1)-(3)	
SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) Any person who commits sexual acts 1. on a person under the age of eighteen who has been entrusted to them for upbringing or guidance in the conduct of their life, 2. on a person under the age of eighteen who is subordinate to them within the framework of a training, service or employment relationship, by abusing a dependency associated with that training, service or employment relationship, or 3. against a person under the age of eighteen who is his or her biological or legal descendant or that of his or her spouse, civil partner or a person with whom he or she lives in a marriage-like or civil partnership-like relationship, performs such acts on the ward, or has the ward perform them on the actor, shall be punished with imprisonment for a term of three months to five years. A person who, under the conditions set out in the first sentence, causes the ward to perform sexual acts on or in front of a third person, or to allow a third person to perform such acts on them, shall be punished in the same way. (2) A person who, in a designated institution, is entrusted with the upbringing, education or supervision of persons under the age of eighteen, and who commits sexual acts 1. on a person under the age of sixteen who has a legal relationship with that institution serving the purpose of their upbringing, education or guidance, or has the acts performed on them, or 2. by exploiting their position, on a person under the age of eighteen who is in a legal relationship with that institution. A person shall likewise be punished who, under the conditions set out in the first sentence, causes the person under their care to perform sexual acts on or in front of a third person, or to allow a third person to perform such acts on them. (3) Any person who, under the conditions set out in paragraph 1 or 2 1. performs sexual acts in front of the ward in order to sexually arouse themselves or the ward, or 2. instructs the ward to perform sexual acts in his presence, shall be liable to imprisonment for a term not exceeding three years or to a fine. (4) An attempt is punishable. (5) In the cases referred to in paragraph 1, first sentence, number 1; paragraph 2, first sentence, number 1; or paragraph 3 in conjunction with paragraph 1 or 2, the court may refrain from imposing a penalty under this provision if the wrongfulness of the act is minor.	«if AbuseOfPersonsUnderCare is true»(1) {Actor} «if {Commits} is true»commits «end if» [SexualActs] 1. on {Person} «if [PersonUnder18] is true»under the age of {AgeLimit18} «end if» who «if {HasBeenEntrusted} is true»has been entrusted to {Actor} for «if {Upbringing} is true»upbringing «end if» «if {GuidanceInConductOfLife} is true»or guidance in the conduct of their life «end if» «end if», 2. on {Person} «if [PersonUnder18] is true»under the age of {AgeLimit18} «end if» who «if {IsSubordinate} is true»is subordinate to {Actor} within the framework of «if {TrainingRelationship} is true»a training relationship «end if» «if {ServiceRelationship} is true», a service relationship «end if» «if {EmploymentRelationship} is true»or an employment relationship «end if» «end if», «if {Abuses} is true»by abusing a {Dependency} associated with that relationship «end if», or 3. on {Person} «if [PersonUnder18] is true»under the age of {AgeLimit18} «end if» who «if {DescendantOfActorBiological} is true»is {Actor}'s biological descendant «end if» «if {DescendantOfActorLegal} is true»or legal descendant «end if» «if {DescendantOfSpouse} is true»or that of {Actor}'s {Spouse} «end if» «if {DescendantOfCivilPartner} is true»or {CivilPartner} «end if» «if {DescendantOfMarriageLikeCohabitant} is true»or {MarriageLikeCohabitant} «end if» «if {DescendantOfCivilPartnershipLikeCohabitant} is true»or {CivilPartnershipLikeCohabitant} «end if», «if {PerformsOnWard} is true»performs [SexualActs] on {Person} «end if» «if {HasWardPerformOnActor} is true»or has {Person} perform [SexualActs] on {Actor} «end if» shall be punished with imprisonment for a term of three months to five years. A person who, «if [Sentence1Conditions] is true»under the conditions set out in the first sentence «end if», «if {Causes} is true»causes «end if» {Person} to «if {WardPerformsOnThirdPerson} is true»perform [SexualActs] on {ThirdPerson} «end if» «if {WardPerformsInFrontOfThirdPerson} is true»or in front of {ThirdPerson} «end if», or «if {WardAllowsThirdPersonToPerform} is true»to allow {ThirdPerson} to perform [SexualActs] on {Person} «end if», shall be punished in the same way. (2) A person who «if {Entrusted} is true»is entrusted in a «if {Designated} is true»designated «end if» {Institution} with the «if {Upbringing} is true»upbringing «end if» «if {Education} is true», education «end if» «if {Supervision} is true»or supervision «end if» of persons «if [PersonUnder18] is true»under the age of {AgeLimit18} «end if» «end if», and «if {Commits} is true»commits «end if» [SexualActs] 1. on {Person} «if [PersonUnder16] is true»under the age of {AgeLimit16} «end if» who «if {WardInstLegalRelationship} is true»has a legal relationship with that {Institution} serving the purpose of their «if {Upbringing} is true»upbringing «end if» «if {Education} is true», education «end if» «if {Supervision} is true»or guidance «end if» «end if», «if {PerformsOnWard} is true»performing [SexualActs] on {Person} «end if» «if {HasWardPerformOnActor} is true»or having {Person} perform [SexualActs] on {Actor} «end if», or 2. «if {Exploits} is true»by exploiting that position «end if», on {Person} «if [PersonUnder18] is true»under the age of {AgeLimit18} «end if» who «if {WardInstLegalRelationship} is true»is in a legal relationship with that {Institution} «end if». A person, «if [Para2Role] is true»under the conditions set out in the first sentence «end if», «if {Causes} is true»causes «end if» {Person} to «if {WardPerformsOnThirdPerson} is true»perform [SexualActs] on {ThirdPerson} «end if» «if {WardPerformsInFrontOfThirdPerson} is true»or in front of {ThirdPerson} «end if», or «if {WardAllowsThirdPersonToPerform} is true»to allow {ThirdPerson} to perform [SexualActs] on {Person} «end if», shall likewise be punished. (3) Any person who, «if [Para1Or2Conditions] is true»under the conditions set out in paragraph 1 or 2 «end if» 1. «if {PerformsInFrontOfWard} is true»performs [SexualActs] in front of {Person} «end if» in order to sexually arouse themselves or the ward, or 2. «if {InstructsWardToPerformInPresence} is true»instructs {Person} to perform [SexualActs] in {Actor}'s presence «end if», shall be liable to imprisonment for a term not exceeding three years or to a fine. (4) An attempt is punishable. (5) In the cases referred to in paragraph 1, first sentence, number 1; paragraph 2,

first sentence, number 1; or paragraph 3 in conjunction with paragraph 1 or 2, the court may refrain from imposing a penalty under this provision if the wrongfulness of the act is minor.«end if»

ANNEXES

COMPUTABLES

```
[PersonUnder16] = PersonAge < AgeLimit16

[InstitutionalPurpose] = Upbringing is true or Education is true or Supervision is true

[PersonUnder18] = PersonAge < AgeLimit18

[Para2Role] = Entrusted is true and Designated is true and InstitutionalPurpose is true and PersonUnder18 is true

[ThirdPersonConduct] = WardPerformsOnThirdPerson is true or WardPerformsInFrontOfThirdPerson is true or WardAllowsThirdPersonToPerform is true

[Para2Extension] = Para2Role is true and Causes is true and ThirdPersonConduct is true

[WardInstRelationship] = WardInstLegalRelationship is true and InstitutionalPurpose is true

[Para2SubLeg1] = Para2Role is true and WardInstRelationship is true and PersonUnder16 is true and (PerformsOnWard is true or HasWardPerformOnActor is true)

[Para2SubLeg2] = Para2Role is true and WardInstRelationship is true and PersonUnder18 is true and Exploits is true and (PerformsOnWard is true or HasWardPerformOnActor is true)

[Para2] = SexualActs is true and (Para2SubLeg1 is true or Para2SubLeg2 is true or Para2Extension is true)

[Leg3] = (DescendantOfActorBiological is true or DescendantOfActorLegal is true or DescendantOfSpouse is true or DescendantOfCivilPartner is true or DescendantOfMarriageLikeCohabitant is true or DescendantOfCivilPartnershipLikeCohabitant is true) and PersonUnder18 is true

[Leg1] = HasBeenEntrusted is true and (Upbringing is true or GuidanceInConductOfLife is true) and PersonUnder18 is true

[Leg2] = IsSubordinate is true and (TrainingRelationship is true or ServiceRelationship is true or EmploymentRelationship is true) and Abuses is true and PersonUnder18 is true

[Sentence1Conditions] = Leg1 is true or Leg2 is true or Leg3 is true

[Sentence1Conduct] = Commits is true and (PerformsOnWard is true or HasWardPerformOnActor is true)

[Para1Sentence1] = SexualActs is true and Sentence1Conditions is true and Sentence1Conduct is true

[Para1Sentence2] = SexualActs is true and Sentence1Conditions is true and Causes is true and ThirdPersonConduct is true

[Para1] = Para1Sentence1 is true or Para1Sentence2 is true

[Para3Modality] = PerformsInFrontOfWard is true or InstructsWardToPerformInPresence is true

[Para10r2Conditions] = Sentence1Conditions is true or Para2Role is true

[Para3] = SexualActs is true and Para10r2Conditions is true and Para3Modality is true

[AbuseOfPersonsUnderCare] = Para1 is true or Para2 is true or Para3 is true
```

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SXP-R01	ACT	Actor		Commits is true
SXP-R02	ACT	Actor		PerformsOnWard is true
SXP-R03	ACT	Actor		HasWardPerformOnActor is true
SXP-R04	CONDITION	None		HasBeenEntrusted is true
SXP-R05	CONDITION	None		Upbringing is true
SXP-R06	CONDITION	None		GuidanceInConductOfLife is true
SXP-R07	CONDITION	None		IsSubordinate is true
SXP-R08	CONDITION	None		TrainingRelationship is true
SXP-R09	CONDITION	None		ServiceRelationship is true
SXP-R10	CONDITION	None		EmploymentRelationship is true
SXP-R11	ACT	Actor		Abuses is true
SXP-R12	CONDITION	None		DescendantOfActorBiological is true
SXP-R13	CONDITION	None		DescendantOfActorLegal is true
SXP-R14	CONDITION	None		DescendantOfSpouse is true

SXP-R15	CONDITION	None		DescendantOfCivilPartner is true
SXP-R16	CONDITION	None		DescendantOfMarriageLikeCohabitant is true
SXP-R17	CONDITION	None		DescendantOfCivilPartnershipLikeCohabitant is true
SXP-R18	ACT	Actor		Causes is true
SXP-R19	ACT	Actor		WardPerformsOnThirdPerson is true
SXP-R20	ACT	Actor		WardPerformsInFrontOfThirdPerson is true
SXP-R21	ACT	Actor		WardAllowsThirdPersonToPerform is true
SXP-R22	ACT	Actor		Entrusted is true
SXP-R23	CONDITION	None		Designated is true
SXP-R24	CONDITION	None		Education is true
SXP-R25	CONDITION	None		Supervision is true
SXP-R26	CONDITION	None		WardInstLegalRelationship is true
SXP-R27	ACT	Actor		Exploits is true
SXP-R28	ACT	Actor		PerformsInFrontOfWard is true
SXP-R29	ACT	Actor		InstructsWardToPerformInPresence is true
SXP-R90	CONDITION	None	the person is under the age of eighteen	PersonUnder18 is true
SXP-R91	CONDITION	None	the person is under the age of sixteen	PersonUnder16 is true
SXP-R92	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
SXP-P0	PROHIBITION	Actor	not realise	not AbuseOfPersonsUnderCare

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} commits	Merkmal	{Commits}	SXP-R01	is true
{Actor} performs the act on {Person}	Merkmal	{PerformsOnWard}	SXP-R02	is true
{Actor} has {Person} perform the act on {Actor}	Merkmal	{HasWardPerformOnActor}	SXP-R03	is true
{Person} has been entrusted to {Actor}	Merkmal	{HasBeenEntrusted}	SXP-R04	is true
upbringing	Merkmal	{Upbringing}	SXP-R05	is true
guidance in the conduct of life	Merkmal	{GuidanceInConductOfLife}	SXP-R06	is true
{Person} is subordinate to {Actor}	Merkmal	{IsSubordinate}	SXP-R07	is true
within the framework of a training relationship	Merkmal	{TrainingRelationship}	SXP-R08	is true
within the framework of a service relationship	Merkmal	{ServiceRelationship}	SXP-R09	is true
within the framework of an employment relationship	Merkmal	{EmploymentRelationship}	SXP-R10	is true
{Actor} abuses a {Dependency} associated with that relationship	Merkmal	{Abuses}	SXP-R11	is true
{Person} is {Actor}'s biological descendant	Merkmal	{DescendantOfActorBiological}	SXP-R12	is true
{Person} is {Actor}'s legal descendant	Merkmal	{DescendantOfActorLegal}	SXP-R13	is true
{Person} is a descendant of {Spouse}	Merkmal	{DescendantOfSpouse}	SXP-R14	is true
{Person} is a descendant of {CivilPartner}	Merkmal	{DescendantOfCivilPartner}	SXP-R15	is true
{Person} is a descendant of {MarriageLikeCohabitant}	Merkmal	{DescendantOfMarriageLikeCohabitant}	SXP-R16	is true
{Person} is a descendant of {CivilPartnershipLikeCohabitant}	Merkmal	{DescendantOfCivilPartnershipLikeCohabitant}	SXP-R17	is true
{Actor} causes {Person}	Merkmal	{Causes}	SXP-R18	is true
{Person} performs the act on {ThirdPerson}	Merkmal	{WardPerformsOnThirdPerson}	SXP-R19	is true
{Person} performs the act in front of {ThirdPerson}	Merkmal	{WardPerformsInFrontOfThirdPerson}	SXP-R20	is true
{Person} allows {ThirdPerson} to perform the act on {Person}	Merkmal	{WardAllowsThirdPersonToPerform}	SXP-R21	is true
{Actor} is entrusted	Merkmal	{Entrusted}	SXP-R22	is true
the institution is designated	Merkmal	{Designated}	SXP-R23	is true
education	Merkmal	{Education}	SXP-R24	is true
supervision in the conduct of life	Merkmal	{Supervision}	SXP-R25	is true
{Person} has a legal relationship with that {Institution}	Merkmal	{WardInstLegalRelationship}	SXP-R26	is true
{Actor} exploits that position	Merkmal	{Exploits}	SXP-R27	is true
{Actor} performs the act in front of {Person}	Merkmal	{PerformsInFrontOfWard}	SXP-R28	is true
{Actor} instructs {Person} to perform the act in {Actor}'s presence	Merkmal	{InstructsWardToPerformInPresence}	SXP-R29	is true
special intent (§174(3) no.1)	subjective	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Abuses}	Boolean	true / false / unknown	Session	{Actor} abuses a {Dependency} associated with that relationship
{Actor}	Reference	–	Session	any person (the actor)
{AgeLimit16}	Number	–	Session	sixteen years
{AgeLimit18}	Number	–	Session	eighteen years

{Causes}	Boolean	true / false / unknown	Session	{Actor} causes {Person}
{CivilPartner}	Party	–	Session	{Actor}'s civil partner
{CivilPartnershipLikeCohabitant}	Party	–	Session	a person with whom {Actor} lives in a civil-partnership-like relationship
{Commits}	Boolean	true / false / unknown	Session	{Actor} commits
{Dependency}	Party	–	Session	a dependency
{DescendantOfActorBiological}	Boolean	true / false / unknown	Session	{Person} is {Actor}'s biological descendant
{DescendantOfActorLegal}	Boolean	true / false / unknown	Session	{Person} is {Actor}'s legal descendant
{DescendantOfCivilPartner}	Boolean	true / false / unknown	Session	{Person} is a descendant of {CivilPartner}
{DescendantOfCivilPartnershipLikeCohabitant}	Boolean	true / false / unknown	Session	{Person} is a descendant of {CivilPartnershipLikeCohabitant}
{DescendantOfMarriageLikeCohabitant}	Boolean	true / false / unknown	Session	{Person} is a descendant of {MarriageLikeCohabitant}
{DescendantOfSpouse}	Boolean	true / false / unknown	Session	{Person} is a descendant of {Spouse}
{Designated}	Boolean	true / false / unknown	Session	the institution is designated
{Education}	Boolean	true / false / unknown	Session	education
{EmploymentRelationship}	Boolean	true / false / unknown	Session	within the framework of an employment relationship
{Entrusted}	Boolean	true / false / unknown	Session	{Actor} is entrusted
{Exploits}	Boolean	true / false / unknown	Session	{Actor} exploits that position
{GuidanceInConductOfLife}	Boolean	true / false / unknown	Session	guidance in the conduct of life
{HasBeenEntrusted}	Boolean	true / false / unknown	Session	{Person} has been entrusted to {Actor}
{HasWardPerformOnActor}	Boolean	true / false / unknown	Session	{Actor} has {Person} perform the act on {Actor}
{Institution}	Party	–	Session	a designated institution
{InstructsWardToPerformInPresence}	Boolean	true / false / unknown	Session	{Actor} instructs {Person} to perform the act in {Actor}'s presence
{IsSubordinate}	Boolean	true / false / unknown	Session	{Person} is subordinate to {Actor}
{MarriageLikeCohabitant}	Party	–	Session	a person with whom {Actor} lives in a marriage-like relationship
{PerformsInFrontOfWard}	Boolean	true / false / unknown	Session	{Actor} performs the act in front of {Person}
{PerformsOnWard}	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
{Person}	Party	–	Session	the protected person (the ward)
{PersonAge}	Number	–	Session	the age of {Person} in years
{ServiceRelationship}	Boolean	true / false / unknown	Session	within the framework of a service relationship
{Spouse}	Party	–	Session	{Actor}'s spouse
{Supervision}	Boolean	true / false / unknown	Session	supervision in the conduct of life
{ThirdPerson}	Party	–	Session	a third person
{TrainingRelationship}	Boolean	true / false / unknown	Session	within the framework of a training relationship
{Upbringing}	Boolean	true / false / unknown	Session	upbringing
{WardAllowsThirdPersonToPerform}	Boolean	true / false / unknown	Session	{Person} allows {ThirdPerson} to perform the act on {Person}
{WardInstLegalRelationship}	Boolean	true / false / unknown	Session	{Person} has a legal relationship with that {Institution}
{WardPerformsInFrontOfThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act in front of {ThirdPerson}
{WardPerfoimsOnThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act on {ThirdPerson}

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((the act is a sexual act within the meaning of §184h and ((({Person} has been entrusted to {Actor} and (upbringing or guidance in the conduct of life) and (PersonAge < AgeLimit18)) or ({Person} is subordinate to {Actor} and (within the framework of a training relationship or within the framework of a service relationship or within the framework of an employment relationship) and {Actor} abuses a {Dependency} associated with that relationship and (PersonAge < AgeLimit18)) or ((({Person} is {Actor}'s biological descendant or {Person} is {Actor}'s legal descendant or {Person} is a descendant of {Spouse} or {Person} is a descendant of {CivilPartner} or {Person} is a descendant of {MarriageLikeCohabitant} or {Person} is a descendant of {CivilPartnershipLikeCohabitant})) and (PersonAge < AgeLimit18))) and ({Actor} commits and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor}))) or (the act is a sexual act within the meaning of §184h and ((({Person} has been entrusted to {Actor} and (upbringing or guidance in the conduct of life) and (PersonAge < AgeLimit18)) or ({Person} is subordinate to {Actor} and (within the framework of a training relationship or within the framework of a service relationship or within the framework of an employment relationship) and {Actor} abuses a {Dependency} associated with that relationship and (PersonAge < AgeLimit18)) or ((({Person} is {Actor}'s biological descendant or {Person} is {Actor}'s legal descendant or {Person} is a descendant of {Spouse} or {Person} is a descendant of {CivilPartner} or {Person} is a descendant of {MarriageLikeCohabitant} or {Person} is a descendant of {CivilPartnershipLikeCohabitant})) and (PersonAge < AgeLimit18))) and {Actor} causes {Person} and ({Person} performs the act on {ThirdPerson} or {Person} performs the act in front of {ThirdPerson} or {Person} allows {ThirdPerson} to perform the act on {Person})))) or (the act is a sexual act within the meaning of §184h and ((({Actor} is entrusted and the institution is designated and (upbringing or education or supervision in the conduct of life) and (PersonAge < AgeLimit18)) and ({Person} has a legal relationship with that {Institution} and (upbringing or education or supervision in the conduct of life)) and (PersonAge < AgeLimit16) and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor})) or ((({Actor} is entrusted and the institution is designated and (upbringing or education or supervision in the conduct of life) and (PersonAge < AgeLimit18)) and ({Person} has a legal relationship with that {Institution} and (upbringing or education or supervision in the conduct of life)) and (PersonAge < AgeLimit18) and {Actor} exploits that position and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor}))) or ((({Actor} is entrusted and the institution is designated and (upbringing or education or supervision in the conduct of life) and (PersonAge < AgeLimit18)) and {Actor} causes {Person} and ({Person} performs the act on {ThirdPerson} or {Person} performs the act in front of {ThirdPerson} or {Person} allows {ThirdPerson} to perform the act on {Person})))) or (the act is a sexual act within the meaning of §184h and ((({Person} has been entrusted to {Actor} and (upbringing or guidance in the conduct of life) and (PersonAge < AgeLimit18)) or ({Person} is subordinate to {Actor} and (within the framework of a training relationship or within the framework of a service relationship or within the framework of an employment relationship) and {Actor} abuses a {Dependency} associated with that relationship and (PersonAge < AgeLimit18)) or ((({Person} is {Actor}'s biological descendant or {Person} is {Actor}'s legal descendant or {Person} is a descendant of {Spouse} or {Person} is a descendant of {CivilPartner} or {Person} is a descendant of {MarriageLikeCohabitant} or {Person} is a descendant of {CivilPartnershipLikeCohabitant})) and (PersonAge < AgeLimit18))) or ({Actor} is entrusted and the institution is designated and (upbringing or education or supervision in the conduct of life) and (PersonAge < AgeLimit18))) and ({Actor} performs the act in front of {Person} or {Actor} instructs {Person} to perform the act in {Actor}'s presence)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[PersonUnder16]	PersonAge, AgeLimit16	false	Recomputes when any input changes; propagates into the composite.
[InstitutionalPurpose]	Upbringing, Education, Supervision	false	Recomputes when any input changes; propagates into the composite.
[PersonUnder18]	PersonAge, AgeLimit18	false	Recomputes when any input changes; propagates into the composite.
[Para2Role]	Entrusted, Designated, InstitutionalPurpose, PersonUnder18	false	Recomputes when any input changes; propagates into the composite.
[ThirdPersonConduct]	WardPerformsOnThirdPerson, WardPerformsInFrontOfThirdPerson, WardAllowsThirdPersonToPerform	false	Recomputes when any input changes; propagates into the composite.
[Para2Extension]	Para2Role, Causes, ThirdPersonConduct	false	Recomputes when any input changes; propagates into the composite.
[WardInstRelationship]	WardInstLegalRelationship, InstitutionalPurpose	false	Recomputes when any input changes; propagates into the composite.
[Para2SubLeg1]	Para2Role, WardInstRelationship, PersonUnder16, PerformsOnWard, HasWardPerformOnActor	false	Recomputes when any input changes; propagates into the composite.
[Para2SubLeg2]	Para2Role, WardInstRelationship, PersonUnder18, Exploits, PerfoirmsOnWard, HasWardPerformOnActor	false	Recomputes when any input changes; propagates into the composite.
[Para2]	SexualActs, Para2SubLeg1, Para2SubLeg2, Para2Extension	false	Recomputes when any input changes; propagates into the composite.
[Leg3]	DescendantOfActorBiological, DescendantOfActorLegal, DescendantOfSpouse, DescendantOfCivilPartner, DescendantOfMarriageLikeCohabitant, DescendantOfCivilPartnershipLikeCohabitant, PersonUnder18	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	HasBeenEntrusted, Upbringing, GuidanceInConductOfLife, PersonUnder18	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	IsSubordinate, TrainingRelationship, ServiceRelationship, EmploymentRelationship, Abuses, PersonUnder18	false	Recomputes when any input changes; propagates into the composite.
[Sentence1Conditions]	Leg1, Leg2, Leg3	false	Recomputes when any input changes; propagates into the composite.
[Sentence1Conduct]	Commits, PerformsOnWard, HasWardPerformOnActor	false	Recomputes when any input changes; propagates into the composite.
[Para1Sentence1]	SexualActs, Sentence1Conditions, Sentence1Conduct	false	Recomputes when any input changes; propagates into the composite.
[Para1Sentence2]	SexualActs, Sentence1Conditions, Causes, ThirdPersonConduct	false	Recomputes when any input changes; propagates into the composite.
[Para1]	Para1Sentence1, Para1Sentence2	false	Recomputes when any input changes; propagates into the composite.
[Para3Modality]	PerfoirmsInFrontOfWard, InstructsWardToPerformInPresence	false	Recomputes when any input changes; propagates into the composite.
[Para10r2Conditions]	Sentence1Conditions, Para2Role	false	Recomputes when any input changes; propagates into the composite.
[Para3]	SexualActs, Para10r2Conditions, Para3Modality	false	Recomputes when any input changes; propagates into the composite.
[AbuseOfPersonsUnderCare]	Para1, Para2, Para3	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SXP-P0)	[AbuseOfPersonsUnderCare]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Abuses}

{Actor}

{AgeLimit16}

{AgeLimit18}

{Causes}

{CivilPartner}

{CivilPartnershipLikeCohabitant}

```
└ {Commits}
└ {Dependency}
└ {DescendantOfActorBiological}
└ {DescendantOfActorLegal}
└ {DescendantOfCivilPartner}
└ {DescendantOfCivilPartnershipLikeCohabitant}
└ {DescendantOfMarriageLikeCohabitant}
└ {DescendantOfSpouse}
└ {Designated}
└ {Education}
└ {EmploymentRelationship}
└ {Entrusted}
└ {Exploits}
└ {GuidanceInConductOfLife}
└ {HasBeenEntrusted}
└ {HasWardPerformOnActor}
└ {Institution}
└ {InstructsWardToPerformInPresence}
└ {IsSubordinate}
└ {MarriageLikeCohabitant}
└ {PerformsInFrontOfWard}
└ {PerformsOnWard}
└ {Person}
└ {PersonAge}
└ {ServiceRelationship}
└ {Spouse}
└ {Supervision}
└ {ThirdPerson}
└ {TrainingRelationship}
└ {Upbringing}
└ {WardAllowsThirdPersonToPerform}
└ {WardInstLegalRelationship}
└ {WardPerformsInFrontOfThirdPerson}
└ {WardPerformsOnThirdPerson}
↓
PHASE 2: evaluate act / intermediate computables
└ [PersonUnder16] = PersonAge < AgeLimit16
└ [InstitutionalPurpose] = Upbringing is true or Education is true or Supervision is true
└ [PersonUnder18] = PersonAge < AgeLimit18
└ [Para2Role] = Entrusted is true and Designated is true and InstitutionalPurpose is true and PersonUnder18 is true
└ [ThirdPersonConduct] = WardPerformsOnThirdPerson is true or WardPerformsInFrontOfThirdPerson is true or WardAllowsThirdPersonToPerform is true
└ [Para2Extension] = Para2Role is true and Causes is true and ThirdPersonConduct is true
└ [WardInstRelationship] = WardInstLegalRelationship is true and InstitutionalPurpose is true
└ [Para2SubLeg1] = Para2Role is true and WardInstRelationship is true and PersonUnder16 is true and (PerformsOnWard is true or HasWardPerformOnActor is
true)
└ [Para2SubLeg2] = Para2Role is true and WardInstRelationship is true and PersonUnder18 is true and Exploits is true and (PerformsOnWard is true or
HasWardPerformOnActor is true)
└ [Para2] = SexualActs is true and (Para2SubLeg1 is true or Para2SubLeg2 is true or Para2Extension is true)
└ [Leg3] = (DescendantOfActorBiological is true or DescendantOfActorLegal is true or DescendantOfSpouse is true or DescendantOfCivilPartner is true or
DescendantOfMarriageLikeCohabitant is true or DescendantOfCivilPartnershipLikeCohabitant is true) and PersonUnder18 is true
└ [Leg1] = HasBeenEntrusted is true and (Upbringing is true or GuidanceInConductOfLife is true) and PersonUnder18 is true
└ [Leg2] = IsSubordinate is true and (TrainingRelationship is true or ServiceRelationship is true or EmploymentRelationship is true) and Abuses is true
and PersonUnder18 is true
└ [Sentence1Conditions] = Leg1 is true or Leg2 is true or Leg3 is true
└ [Sentence1Conduct] = Commits is true and (PerformsOnWard is true or HasWardPerformOnActor is true)
└ [Para1Sentence1] = SexualActs is true and Sentence1Conditions is true and Sentence1Conduct is true
└ [Para1Sentence2] = SexualActs is true and Sentence1Conditions is true and Causes is true and ThirdPersonConduct is true
└ [Para1] = Para1Sentence1 is true or Para1Sentence2 is true
└ [Para3Modality] = PerformsInFrontOfWard is true or InstructsWardToPerformInPresence is true
└ [Para1Or2Conditions] = Sentence1Conditions is true or Para2Role is true
└ [Para3] = SexualActs is true and Para1Or2Conditions is true and Para3Modality is true
└ [SexualActs] composed by name (the sexual-act term in §184h)
↓
PHASE 3: evaluate the objective conditions
└ [AbuseOfPersonsUnderCare] = Para1 is true or Para2 is true or Para3 is true
↓
VERDICT (PrimeRule)
└ [AbuseOfPersonsUnderCare] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└ [AbuseOfPersonsUnderCare] is false → not realised
```

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [AbuseOfPersonsUnderCare] depends on [PersonUnder16], [InstitutionalPurpose], [PersonUnder18], [Para2Role], [ThirdPersonConduct], [Para2Extension], [WardInstRelationship], [Para2SubLeg1], [Para2SubLeg2], [Para2], [Leg3], [Leg1], [Leg2], [Sentence1Conditions], [Sentence1Conduct], [Para1Sentence1], [Para1Sentence2], [Para1], [Para3Modality], [Para1Or2Conditions], [Para3] plus composed [SexualActs]; none refer back to [AbuseOfPersonsUnderCare]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Abuses}	Element/Datum: {Actor} abuses a {Dependency} associated with that relationship.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{AgeLimit16}	Element/Datum: sixteen years.?	Number

Q4	Session	{AgeLimit18}	Element/Datum: eighteen years.?	Number
Q5	Session	{Causes}	Element/Datum: {Actor} causes {Person}.?	Boolean
Q6	Session	{CivilPartner}	Element/Datum: {Actor}'s civil partner.?	Party
Q7	Session	{CivilPartnershipLikeCohabitant}	Element/Datum: a person with whom {Actor} lives in a civil-partnership-like relationship.?	Party
Q8	Session	{Commits}	Element/Datum: {Actor} commits.?	Boolean
Q9	Session	{Dependency}	Element/Datum: a dependency.?	Party
Q10	Session	{DescendantOfActorBiological}	Element/Datum: {Person} is {Actor}'s biological descendant.?	Boolean
Q11	Session	{DescendantOfActorLegal}	Element/Datum: {Person} is {Actor}'s legal descendant.?	Boolean
Q12	Session	{DescendantOfCivilPartner}	Element/Datum: {Person} is a descendant of {CivilPartner}.?	Boolean
Q13	Session	{DescendantOfCivilPartnershipLikeCohabitant}	Element/Datum: {Person} is a descendant of {CivilPartnershipLikeCohabitant}.?	Boolean
Q14	Session	{DescendantOfMarriageLikeCohabitant}	Element/Datum: {Person} is a descendant of {MarriageLikeCohabitant}.?	Boolean
Q15	Session	{DescendantOfSpouse}	Element/Datum: {Person} is a descendant of {Spouse}.?	Boolean
Q16	Session	{Designated}	Element/Datum: the institution is designated.?	Boolean
Q17	Session	{Education}	Element/Datum: education.?	Boolean
Q18	Session	{EmploymentRelationship}	Element/Datum: within the framework of an employment relationship.?	Boolean
Q19	Session	{Entrusted}	Element/Datum: {Actor} is entrusted.?	Boolean
Q20	Session	{Exploits}	Element/Datum: {Actor} exploits that position.?	Boolean
Q21	Session	{GuidanceInConductOfLife}	Element/Datum: guidance in the conduct of life.?	Boolean
Q22	Session	{HasBeenEntrusted}	Element/Datum: {Person} has been entrusted to {Actor}.?	Boolean
Q23	Session	{HasWardPerformOnActor}	Element/Datum: {Actor} has {Person} perform the act on {Actor}.?	Boolean
Q24	Session	{Institution}	Element/Datum: a designated institution.?	Party
Q25	Session	{InstructsWardToPerformInPresence}	Element/Datum: {Actor} instructs {Person} to perform the act in {Actor}'s presence.?	Boolean
Q26	Session	{IsSubordinate}	Element/Datum: {Person} is subordinate to {Actor}.?	Boolean
Q27	Session	{MarriageLikeCohabitant}	Element/Datum: a person with whom {Actor} lives in a marriage-like relationship.?	Party
Q28	Session	{PerformsInFrontOfWard}	Element/Datum: {Actor} performs the act in front of {Person}.?	Boolean
Q29	Session	{PerformsOnWard}	Element/Datum: {Actor} performs the act on {Person}.?	Boolean
Q30	Session	{Person}	Element/Datum: the protected person (the ward).?	Party
Q31	Session	{PersonAge}	Element/Datum: the age of {Person} in years.?	Number
Q32	Session	{ServiceRelationship}	Element/Datum: within the framework of a service relationship.?	Boolean
Q33	Session	{Spouse}	Element/Datum: {Actor}'s spouse.?	Party
Q34	Session	{Supervision}	Element/Datum: supervision in the conduct of life.?	Boolean
Q35	Session	{ThirdPerson}	Element/Datum: a third person.?	Party
Q36	Session	{TrainingRelationship}	Element/Datum: within the framework of a training relationship.?	Boolean
Q37	Session	{Upbringing}	Element/Datum: upbringing.?	Boolean
Q38	Session	{WardAllowsThirdPersonToPerform}	Element/Datum: {Person} allows {ThirdPerson} to perform the act on {Person}.?	Boolean
Q39	Session	{WardInstLegalRelationship}	Element/Datum: {Person} has a legal relationship with that {Institution}.?	Boolean
Q40	Session	{WardPerformsInFrontOfThirdPerson}	Element/Datum: {Person} performs the act in front of {ThirdPerson}.?	Boolean
Q41	Session	{WardPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on {ThirdPerson}.?	Boolean

TEN-RULE SWEEP
Coordinated purpose objects renamed to bare object nouns (**{Upbringing}**, **{GuidanceInConductOfLife}**, **{Education}**, **{Supervision}**) and nested inside their governing spans (**{HasBeenEntrusted}**, **{IsSubordinate}**, **{Entrusted}**, **{WardInstLegalRelationship}**); connectives folded into the second and later blocks; every disjunction carried in a computable (rules 1, 2, 5, 7, 10).

WHOLE SECTION
Paragraphs 1 to 3 of §174: the three private-care legs and the third-person extension; the institutional variant with its under-sixteen and under-eighteen-by-exploitation sub-legs and extension; the two without-contact modalities conditioned on paragraph 1 or 2.

TRANSLATION NOTES
The English follows the German in the source column: the dropped governing modality restored (performs on the ward, or has the ward perform on the actor), and Abkömmling rendered descendant, not child. No inline highlight (R1, R2).

EVERY VERB A RULE
{Commits}, **{HasBeenEntrusted}**, **{IsSubordinate}**, **{Abuses}**, **{Causes}**, **{Entrusted}**, **{Exploits}**, **{PerformsInFrontOfWard}**, **{InstructsWardToPerformInPresence}** are rules; objects are separate variables (R4, R5).

AGE
“under” is the computable **[PersonUnder18]** / **[PersonUnder16]**; the limits are **{AgeLimit18}** and **{AgeLimit16}**; the comparison is in the computable Definition, not glossed in the markup (R3). The limit is referenced in each leg as the text repeats it (R10).

DEPENDENCY
“by abusing a dependency associated with that relationship” is **{Abuses}** (action) over **{Dependency}** (object), the association referring back to the leg-2 relationship (R8).

RELATIONS AS VARIABLES
{Spouse}, **{CivilPartner}**, **{MarriageLikeCohabitant}**, **{CivilPartnershipLikeCohabitant}** are variables; the descendant relation is the rule (R5).

CROSS-REFERENCES
[Sentence1Conditions], **[Para2Role]** and **[Para1Or2Conditions]** carry “the conditions of the first sentence” and “of paragraph 1 or 2” (R9).

SEXUAL ACT
[SexualActs] (§184h, named by the term) for every “sexual acts” and “such acts” (R7, R11). Strikes (penalties, intent, (4), (5)) live in the markup only; the source column is clean (R1).

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who commits sexual acts on a prisoner or a person detained by order of the authorities who has been entrusted to him for education, training, supervision or care, or allows such acts to be performed on him or her by the prisoner or person in custody, or causes the prisoner or person in custody to perform or tolerate sexual acts on or by a third person, shall be punished with imprisonment for a term of three months to five years. (2) A person who abuses a person admitted to an institution for sick or vulnerable persons and entrusted to him for supervision or care by exploiting that person's illness or vulnerability to perform sexual acts on them or have them performed on him, or by causing that person to perform or tolerate sexual acts on or by a third person, shall be punished in the same manner. (3) An attempt is punishable.	<pre>«if AbuseOfPersonInCustody is true»(1) {Actor} «if {Commits} is true»commits «end if» [SexualActs] on «if {IsPrisoner} is true»a prisoner «end if» «if {IsDetainedByAuthorities} is true»or a person detained by order of the authorities «end if» who «if {HasBeenEntrusted} is true»has been entrusted to {Actor} for «if {Education} is true»education «end if» «if {Training} is true», training «end if» «if {Supervision} is true», supervision «end if» «if {Care} is true»or care «end if» «end if», or «if {AllowsVictimToPerform} is true»allows such acts to be performed on {Actor} by {Person} «end if», or «if {Causes} is true»causes «end if» {Person} to «if {VictimPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate [SexualActs] by a {ThirdPerson} «end if», shall be punished with imprisonment for a term of three months to five years. (2) {Actor} «if {Abuses} is true»abuses «end if» {Person} «if {Admitted} is true»admitted to an {Institution} «if {SickPersons} is true»for sick «end if» «if {VulnerablePersons} is true»or vulnerable persons «end if» «end if» and «if {HasBeenEntrusted} is true»entrusted to {Actor} «if {Supervision} is true»for supervision «end if» «if {Care} is true»or care «end if» «end if» by «if {Exploits} is true»exploiting «if {Illness} is true»that person's illness «end if» «if {Vulnerability} is true»or vulnerability «end if» «end if» to «if {PerformsOnVictim} is true»perform [SexualActs] on {Person} «end if» «if {HasVictimPerformOnActor} is true»or have them performed on {Actor} «end if», or by «if {Causes} is true»causing «end if» {Person} to «if {VictimPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate [SexualActs] by a {ThirdPerson} «end if», shall be punished in the same manner. (3) An attempt is punishable.«end if»</pre>

ANNEXES

COMPUTABLES

[ThirdPersonConduct] = Causes is true and (VictimPerformsOnThirdPerson is true or VictimToleratesByThirdPerson is true)

[Para2Conduct] = PerformsOnVictim is true or HasVictimPerformOnActor is true or ThirdPersonConduct is true

[EntrustmentPurpose] = Education is true or Training is true or Supervision is true or Care is true

[VictimStatus] = IsPrisoner is true or IsDetainedByAuthorities is true

[Para1Conduct] = Commits is true or AllowsVictimToPerform is true or ThirdPersonConduct is true

[InstitutionDesignation] = SickPersons is true or VulnerablePersons is true

[Para2Setting] = Admitted is true and InstitutionDesignation is true and HasBeenEntrusted is true and (Supervision is true or Care is true)

[Exploitation] = Exploits is true and (Illness is true or Vulnerability is true)

[Para2] = SexualActs is true and Abuses is true and Para2Setting is true and Exploitation is true and Para2Conduct is true

[Para1Relationship] = VictimStatus is true and HasBeenEntrusted is true and EntrustmentPurpose is true

[Para1] = SexualActs is true and Para1Relationship is true and Para1Conduct is true

[AbuseOfPersonInCustody] = Para1 is true or Para2 is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
PIC-R01	ACT	Actor		Commits is true
PIC-R02	CONDITION	None		IsPrisoner is true
PIC-R03	CONDITION	None		IsDetainedByAuthorities is true
PIC-R04	CONDITION	None		HasBeenEntrusted is true
PIC-R05	CONDITION	None		Education is true
PIC-R06	CONDITION	None		Training is true
PIC-R07	CONDITION	None		Supervision is true
PIC-R08	CONDITION	None		Care is true
PIC-R09	ACT	Actor		AllowsVictimToPerform is true
PIC-R10	ACT	Actor		Causes is true
PIC-R11	CONDITION	None		VictimPerformsOnThirdPerson is true

PIC-R12	CONDITION	None		VictimToleratesByThirdPerson is true
PIC-R13	ACT	Actor		Abuses is true
PIC-R14	CONDITION	None		Admitted is true
PIC-R15	CONDITION	None		SickPersons is true
PIC-R16	CONDITION	None		VulnerablePersons is true
PIC-R17	ACT	Actor		Exploits is true
PIC-R18	CONDITION	None		Illness is true
PIC-R19	CONDITION	None		Vulnerability is true
PIC-R20	ACT	Actor		PerformsOnVictim is true
PIC-R21	ACT	Actor		HasVictimPerformOnActor is true
PIC-R90	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
PIC-P0	PROHIBITION	Actor	not realise	not AbuseOfPersonInCustody

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} commits the act on {Person}	Merkmal	{Commits}	PIC-R01	is true
{Person} is a prisoner	Merkmal	{IsPrisoner}	PIC-R02	is true
{Person} is detained by order of the authorities	Merkmal	{IsDetainedByAuthorities}	PIC-R03	is true
{Person} has been entrusted to {Actor}	Merkmal	{HasBeenEntrusted}	PIC-R04	is true
education	Merkmal	{Education}	PIC-R05	is true
training	Merkmal	{Training}	PIC-R06	is true
supervision	Merkmal	{Supervision}	PIC-R07	is true
care	Merkmal	{Care}	PIC-R08	is true
{Actor} allows the act to be performed on {Actor} by {Person}	Merkmal	{AllowsVictimToPerform}	PIC-R09	is true
{Actor} causes {Person}	Merkmal	{Causes}	PIC-R10	is true
{Person} performs the act on a {ThirdPerson}	Merkmal	{VictimPerformsOnThirdPerson}	PIC-R11	is true
{Person} tolerates the act by a {ThirdPerson}	Merkmal	{VictimToleratesByThirdPerson}	PIC-R12	is true
{Actor} abuses {Person}	Merkmal	{Abuses}	PIC-R13	is true
{Person} is admitted to the {Institution}	Merkmal	{Admitted}	PIC-R14	is true
the {Institution} is for sick persons	Merkmal	{SickPersons}	PIC-R15	is true
the {Institution} is for vulnerable persons	Merkmal	{VulnerablePersons}	PIC-R16	is true
{Actor} exploits	Merkmal	{Exploits}	PIC-R17	is true
{Person}'s illness	Merkmal	{Illness}	PIC-R18	is true
{Person}'s vulnerability	Merkmal	{Vulnerability}	PIC-R19	is true
{Actor} performs the act on {Person}	Merkmal	{PerformsOnVictim}	PIC-R20	is true
{Actor} has {Person} perform the act on {Actor}	Merkmal	{HasVictimPerformOnActor}	PIC-R21	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Abuses}	Boolean	true / false / unknown	Session	{Actor} abuses {Person}
{Actor}	Reference	–	Session	any person (the actor)
{Admitted}	Boolean	true / false / unknown	Session	{Person} is admitted to the {Institution}
{AllowsVictimToPerform}	Boolean	true / false / unknown	Session	{Actor} allows the act to be performed on {Actor} by {Person}
{Care}	Boolean	true / false / unknown	Session	care
{Causes}	Boolean	true / false / unknown	Session	{Actor} causes {Person}
{Commits}	Boolean	true / false / unknown	Session	{Actor} commits the act on {Person}
{Education}	Boolean	true / false / unknown	Session	education
{Exploits}	Boolean	true / false / unknown	Session	{Actor} exploits
{HasBeenEntrusted}	Boolean	true / false / unknown	Session	{Person} has been entrusted to {Actor}
{HasVictimPerformOnActor}	Boolean	true / false / unknown	Session	{Actor} has {Person} perform the act on {Actor}
{Illness}	Boolean	true / false / unknown	Session	{Person}'s illness
{Institution}	Party	–	Session	an institution
{IsDetainedByAuthorities}	Boolean	true / false / unknown	Session	{Person} is detained by order of the authorities
{IsPrisoner}	Boolean	true / false / unknown	Session	{Person} is a prisoner
{PerformsOnVictim}	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
{Person}	Party	–	Session	the protected person (the victim)
{SickPersons}	Boolean	true / false / unknown	Session	the {Institution} is for sick persons
{Supervision}	Boolean	true / false / unknown	Session	supervision
{ThirdPerson}	Party	–	Session	a third person

{Training}	Boolean	true / false / unknown	Session	training
{VictimPerformsOnThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act on a {ThirdPerson}
{VictimToleratesByThirdPerson}	Boolean	true / false / unknown	Session	{Person} tolerates the act by a {ThirdPerson}
{Vulnerability}	Boolean	true / false / unknown	Session	{Person}'s vulnerability
{VulnerablePersons}	Boolean	true / false / unknown	Session	the {Institution} is for vulnerable persons

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (the act is a sexual act within the meaning of §184h and (({Person} is a prisoner or {Person} is detained by order of the authorities) and {Person} has been entrusted to {Actor} and (education or training or supervision or care)) and ({Actor} commits the act on {Person} or {Actor} allows the act to be performed on {Actor} by {Person} or ({Actor} causes {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson})))) or (the act is a sexual act within the meaning of §184h and {Actor} abuses {Person} and ({Person} is admitted to the {Institution} and (the {Institution} is for sick persons or the {Institution} is for vulnerable persons) and {Person} has been entrusted to {Actor} and (supervision or care)) and ({Actor} exploits and ({Person}'s illness or {Person}'s vulnerability)) and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor} or ({Actor} causes {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson}))))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ThirdPersonConduct]	Causes, VictimPerformsOnThirdPerson, VictimToleratesByThirdPerson	false	Recomputes when any input changes; propagates into the composite.
[Para2Conduct]	PerformsOnVictim, HasVictimPerformOnActor, ThirdPersonConduct	false	Recomputes when any input changes; propagates into the composite.
[EntrustmentPurpose]	Education, Training, Supervision, Care	false	Recomputes when any input changes; propagates into the composite.
[VictimStatus]	IsPrisoner, IsDetainedByAuthorities	false	Recomputes when any input changes; propagates into the composite.
[Para1Conduct]	Commits, AllowsVictimToPerform, ThirdPersonConduct	false	Recomputes when any input changes; propagates into the composite.
[InstitutionDesignation]	SickPersons, VulnerablePersons	false	Recomputes when any input changes; propagates into the composite.
[Para2Setting]	Admitted, InstitutionDesignation, HasBeenEntrusted, Supervision, Care	false	Recomputes when any input changes; propagates into the composite.
[Exploitation]	Exploits, Illness, Vulnerability	false	Recomputes when any input changes; propagates into the composite.
[Para2]	SexualActs, Abuses, Para2Setting, Exploitation, Para2Conduct	false	Recomputes when any input changes; propagates into the composite.
[Para1Relationship]	VictimStatus, HasBeenEntrusted, EntrustmentPurpose	false	Recomputes when any input changes; propagates into the composite.
[Para1]	SexualActs, Para1Relationship, Para1Conduct	false	Recomputes when any input changes; propagates into the composite.
[AbuseOfPersonInCustody]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (PIC-P0)	[AbuseOfPersonInCustody]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Abuses}
- └ {Actor}
- └ {Admitted}
- └ {AllowsVictimToPerform}
- └ {Care}
- └ {Causes}
- └ {Commits}
- └ {Education}
- └ {Exploits}
- └ {HasBeenEntrusted}
- └ {HasVictimPerformOnActor}
- └ {Illness}
- └ {Institution}
- └ {IsDetainedByAuthorities}
- └ {IsPrisoner}
- └ {PerformsOnVictim}
- └ {Person}
- └ {SickPersons}
- └ {Supervision}
- └ {ThirdPerson}
- └ {Training}
- └ {VictimPerformsOnThirdPerson}
- └ {VictimToleratesByThirdPerson}
- └ {Vulnerability}
- └ {VulnerablePersons}

↓

PHASE 2: evaluate act / intermediate computables

- └ [ThirdPersonConduct] = Causes is true and (VictimPerformsOnThirdPerson is true or VictimToleratesByThirdPerson is true)
- └ [Para2Conduct] = PerformsOnVictim is true or HasVictimPerformOnActor is true or ThirdPersonConduct is true
- └ [EntrustmentPurpose] = Education is true or Training is true or Supervision is true or Care is true
- └ [VictimStatus] = IsPrisoner is true or IsDetainedByAuthorities is true
- └ [Para1Conduct] = Commits is true or AllowsVictimToPerform is true or ThirdPersonConduct is true
- └ [InstitutionDesignation] = SickPersons is true or VulnerablePersons is true
- └ [Para2Setting] = Admitted is true and InstitutionDesignation is true and HasBeenEntrusted is true and (Supervision is true or Care is true)
- └ [Exploitation] = Exploits is true and (Illness is true or Vulnerability is true)
- └ [Para2] = SexualActs is true and Abuses is true and Para2Setting is true and Exploitation is true and Para2Conduct is true
- └ [Para1Relationship] = VictimStatus is true and HasBeenEntrusted is true and EntrustmentPurpose is true
- └ [Para1] = SexualActs is true and Para1Relationship is true and Para1Conduct is true

└─ [SexualActs] composed by name (the sexual-act term in §184h)

↓

PHASE 3: evaluate the objective conditions

└─ [AbuseOfPersonInCustody] = Para1 is true or Para2 is true

↓

VERDICT (PrimeRule)

└─ [AbuseOfPersonInCustody] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

└─ [AbuseOfPersonInCustody] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [AbuseOfPersonInCustody] depends on [ThirdPersonConduct], [Para2Conduct], [EntrustmentPurpose], [VictimStatus], [Para1Conduct], [InstitutionDesignation], [Para2Setting], [Exploitation], [Para2], [Para1Relationship], [Para1] plus composed [SexualActs]; none refer back to [AbuseOfPersonInCustody]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Abuses}	Element/Datum: {Actor} abuses {Person}?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{Admitted}	Element/Datum: {Person} is admitted to the {Institution}?	Boolean
Q4	Session	{AllowsVictimToPerform}	Element/Datum: {Actor} allows the act to be performed on {Actor} by {Person}?	Boolean
Q5	Session	{Care}	Element/Datum: care?	Boolean
Q6	Session	{Causes}	Element/Datum: {Actor} causes {Person}?	Boolean
Q7	Session	{Commits}	Element/Datum: {Actor} commits the act on {Person}?	Boolean
Q8	Session	{Education}	Element/Datum: education?	Boolean
Q9	Session	{Exploits}	Element/Datum: {Actor} exploits?	Boolean
Q10	Session	{HasBeenEntrusted}	Element/Datum: {Person} has been entrusted to {Actor}?	Boolean
Q11	Session	{HasVictimPerformOnActor}	Element/Datum: {Actor} has {Person} perform the act on {Actor}?	Boolean
Q12	Session	{Illness}	Element/Datum: {Person}'s illness?	Boolean
Q13	Session	{Institution}	Element/Datum: an institution?	Party
Q14	Session	{IsDetainedByAuthorities}	Element/Datum: {Person} is detained by order of the authorities?	Boolean
Q15	Session	{IsPrisoner}	Element/Datum: {Person} is a prisoner?	Boolean
Q16	Session	{PerformsOnVictim}	Element/Datum: {Actor} performs the act on {Person}?	Boolean
Q17	Session	{Person}	Element/Datum: the protected person (the victim)?	Party
Q18	Session	{SickPersons}	Element/Datum: the {Institution} is for sick persons?	Boolean
Q19	Session	{Supervision}	Element/Datum: supervision?	Boolean
Q20	Session	{ThirdPerson}	Element/Datum: a third person?	Party
Q21	Session	{Training}	Element/Datum: training?	Boolean
Q22	Session	{VictimPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on a {ThirdPerson}?	Boolean
Q23	Session	{VictimToleratesByThirdPerson}	Element/Datum: {Person} tolerates the act by a {ThirdPerson}?	Boolean
Q24	Session	{Vulnerability}	Element/Datum: {Person}'s vulnerability?	Boolean
Q25	Session	{VulnerablePersons}	Element/Datum: the {Institution} is for vulnerable persons?	Boolean

FLAGS

- WHOLE SECTION** Paragraph 1, the custody and official-detention variant with its third-person extension; paragraph 2, the institutional sick-or-vulnerable variant turning on abuse by exploitation of illness or vulnerability, with its third-person extension; attempt in (3) struck.
- TEN-RULE SWEEP** Fused verb-object Booleans separated: {Exploits} now spans the coordinated objects {Illness} and {Vulnerability}; the institution's designation is the coordinated objects {SickPersons} and {VulnerablePersons} nested in the {Admitted} span; the entrustment purposes {Education}, {Training}, {Supervision}, {Care} are object variables nested in the {HasBeenEntrusted} span. Every disjunction is carried in a computable ([VictimStatus], [EntrustmentPurpose], [InstitutionDesignation], [Exploitation]); connectives are folded into the second and later blocks (rules 1, 2, 5, 7, 10).
- CONDUCT LOGIC NOTE** Paragraph 1's three modalities are true alternatives in [Para1Conduct]: {Commits} (performs on the victim), {AllowsVictimToPerform}, or the causes-third-person extension. The prior encoding required {Commits} alongside the other modalities, which misread the source.
- VICTIM AS VARIABLE** {Person} carries the prisoner or detained person; the status alternatives {IsPrisoner} and {IsDetainedByAuthorities} are coordinated status predicates with the disjunction in [VictimStatus] (rules 3, 6, 10).
- SEXUAL ACT** [SexualActs] (§184h, by name) for every occurrence.
- STRIKES** Penalties in (1) and (2) and the attempt in (3) struck in the markup only; the source column is clean.
- TREATMENT** §174a is Human-awareness-tagged. Encoded on its objective elements, consistent with the §174 precedent.

(1) Any public official appointed to participate in criminal proceedings or in proceedings for the imposition of a custodial measure of reform and security or administrative detention who, by abusing the dependence created by the proceedings, performs sexual acts on the person against whom the proceedings are directed, or allows the other person to perform such acts on them, or causes that person to perform or tolerate sexual acts on or by a third person, shall be punished with imprisonment for a term of three months to five years. (2) An attempt is punishable.

«if AbuseOfOfficialPosition is true»(1) Any «if {IsPublicOfficial} is true»public official «end if» «if {AppointedToParticipate} is true»appointed to participate in «if {CriminalProceedings} is true»criminal proceedings «end if» «if {CustodialMeasureProceedings} is true»or in proceedings for the imposition of a custodial measure of reform and security «end if» «if {AdministrativeDetentionProceedings} is true»or administrative detention «end if» «end if» who, by «if {Abuses} is true»abusing the {Dependence} created by the proceedings «end if», «if {PerformsOnTarget} is true»performs [SexualActs] on {Person} «end if», or «if {AllowsTargetToPerform} is true»allows {Person} to perform [SexualActs] on {Actor} «end if», or «if {Causes} is true»causes «end if» {Person} to «if {TargetPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {TargetToleratesByThirdPerson} is true»or tolerate [SexualActs] by a {ThirdPerson} «end if», shall be punished with imprisonment for a term of three months to five years. (2) An attempt is punishable.«end if»

ANNEXES

COMPUTABLES

[ProceedingType] = CriminalProceedings is true or CustodialMeasureProceedings is true or AdministrativeDetentionProceedings is true

[ThirdPersonConduct] = Causes is true and (TargetPerformsOnThirdPerson is true or TargetToleratesByThirdPerson is true)

[Conduct] = PerformsOnTarget is true or AllowsTargetToPerform is true or ThirdPersonConduct is true

[OfficialRole] = IsPublicOfficial is true and AppointedToParticipate is true and ProceedingType is true

[AbuseOfOfficialPosition] = SexualActs is true and OfficialRole is true and Abuses is true and Conduct is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
AOP-R01	CONDITION	None		IsPublicOfficial is true
AOP-R02	ACT	Actor		AppointedToParticipate is true
AOP-R03	CONDITION	None		CriminalProceedings is true
AOP-R04	CONDITION	None		CustodialMeasureProceedings is true
AOP-R05	CONDITION	None		AdministrativeDetentionProceedings is true
AOP-R06	ACT	Actor		Abuses is true
AOP-R07	ACT	Actor		PerformsOnTarget is true
AOP-R08	ACT	Actor		AllowsTargetToPerform is true
AOP-R09	ACT	Actor		Causes is true
AOP-R10	CONDITION	None		TargetPerformsOnThirdPerson is true
AOP-R11	CONDITION	None		TargetToleratesByThirdPerson is true
AOP-R90	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
AOP-P0	PROHIBITION	Actor	not realise	not AbuseOfOfficialPosition

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any public official who	Tätersubjekt	{Actor}	–	in scope
{Actor} is a public official	Merkmal	{IsPublicOfficial}	AOP-R01	is true
{Actor} is appointed to participate	Merkmal	{AppointedToParticipate}	AOP-R02	is true
criminal proceedings	Merkmal	{CriminalProceedings}	AOP-R03	is true
proceedings for the imposition of a custodial measure	Merkmal	{CustodialMeasureProceedings}	AOP-R04	is true
proceedings for administrative detention	Merkmal	{AdministrativeDetentionProceedings}	AOP-R05	is true
{Actor} abuses the {Dependence}	Merkmal	{Abuses}	AOP-R06	is true
{Actor} performs the act on {Person}	Merkmal	{PerformsOnTarget}	AOP-R07	is true
{Actor} allows {Person} to perform the act on {Actor}	Merkmal	{AllowsTargetToPerform}	AOP-R08	is true
{Actor} causes {Person}	Merkmal	{Causes}	AOP-R09	is true
{Person} performs the act on a {ThirdPerson}	Merkmal	{TargetPerformsOnThirdPerson}	AOP-R10	is true
{Person} tolerates the act by a {ThirdPerson}	Merkmal	{TargetToleratesByThirdPerson}	AOP-R11	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Abuses}	Boolean	true / false / unknown	Session	{Actor} abuses the {Dependence}
{Actor}	Reference	–	Session	any person (the actor)
{AdministrativeDetentionProceedings}	Boolean	true / false / unknown	Session	proceedings for administrative detention

<code>{AllowsTargetToPerform}</code>	Boolean	true / false / unknown	Session	{Actor} allows {Person} to perform the act on {Actor}
<code>{AppointedToParticipate}</code>	Boolean	true / false / unknown	Session	{Actor} is appointed to participate
<code>{Causes}</code>	Boolean	true / false / unknown	Session	{Actor} causes {Person}
<code>{CriminalProceedings}</code>	Boolean	true / false / unknown	Session	criminal proceedings
<code>{CustodialMeasureProceedings}</code>	Boolean	true / false / unknown	Session	proceedings for the imposition of a custodial measure
<code>{Dependence}</code>	Party	–	Session	the dependence created by the proceedings
<code>{IsPublicOfficial}</code>	Boolean	true / false / unknown	Session	{Actor} is a public official
<code>{PerformsOnTarget}</code>	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
<code>{Person}</code>	Party	–	Session	the person against whom the proceedings are directed
<code>{TargetPerformsOnThirdPerson}</code>	Boolean	true / false / unknown	Session	{Person} performs the act on a {ThirdPerson}
<code>{TargetToleratesByThirdPerson}</code>	Boolean	true / false / unknown	Session	{Person} tolerates the act by a {ThirdPerson}
<code>{ThirdPerson}</code>	Party	–	Session	a third person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: the act is a sexual act within the meaning of §184h and ({Actor} is a public official and {Actor} is appointed to participate and (criminal proceedings or proceedings for the imposition of a custodial measure or proceedings for administrative detention)) and {Actor} abuses the {Dependence} and ({Actor} performs the act on {Person} or {Actor} allows {Person} to perform the act on {Actor} or ({Actor} causes {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson}))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse–derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[ProceedingType]</code>	<code>CriminalProceedings</code> , <code>CustodialMeasureProceedings</code> , <code>AdministrativeDetentionProceedings</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[ThirdPersonConduct]</code>	<code>Causes</code> , <code>TargetPerfoxmsOnThirdPerson</code> , <code>TargetToleratesByThirdPerson</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[Conduct]</code>	<code>PerformsOnTarget</code> , <code>AllowsTargetToPerform</code> , <code>ThirdPersonConduct</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[OfficialRole]</code>	<code>IsPublicOfficial</code> , <code>AppointedToParticipate</code> , <code>ProceedingType</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[AbuseOfOfficialPosition]</code>	<code>SexualActs</code> , <code>OfficialRole</code> , <code>Abuses</code> , <code>Conduct</code>	false	Final composite. Re–evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (AOP-P0)	<code>[AbuseOfOfficialPosition]</code>	re–derives	The PrimeRule prohibition holds whenever the composite is true; re–derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- `{Abuses}`
- `{Actor}`
- `{AdministrativeDetentionProceedings}`
- `{AllowsTargetToPerform}`
- `{AppointedToParticipate}`
- `{Causes}`
- `{CriminalProceedings}`
- `{CustodialMeasureProceedings}`
- `{Dependence}`
- `{IsPublicOfficial}`
- `{PerformsOnTarget}`
- `{Person}`
- `{TargetPerformsOnThirdPerson}`
- `{TargetToleratesByThirdPerson}`
- `{ThirdPerson}`

↓

PHASE 2: evaluate act / intermediate computables

- `[ProceedingType]` = `CriminalProceedings` is true or `CustodialMeasureProceedings` is true or `AdministrativeDetentionProceedings` is true
- `[ThirdPersonConduct]` = `Causes` is true and (`TargetPerformsOnThirdPerson` is true or `TargetToleratesByThirdPerson` is true)
- `[Conduct]` = `PerformsOnTarget` is true or `AllowsTargetToPerform` is true or `ThirdPersonConduct` is true
- `[OfficialRole]` = `IsPublicOfficial` is true and `AppointedToParticipate` is true and `ProceedingType` is true
- `[SexualActs]` composed by name (the sexual–act term in §184h)

↓

PHASE 3: evaluate the objective conditions

- `[AbuseOfOfficialPosition]` = `SexualActs` is true and `OfficialRole` is true and `Abuses` is true and `Conduct` is true

↓

VERDICT (PrimeRule)

- `[AbuseOfOfficialPosition]` is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- `[AbuseOfOfficialPosition]` is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re–entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re–entries.

CIRCULARITY CHECK

- `[AbuseOfOfficialPosition]` depends on `[ProceedingType]`, `[ThirdPersonConduct]`, `[Conduct]`, `[OfficialRole]` plus composed `[SexualActs]`; none refer back to `[AbuseOfOfficialPosition]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Abuses}	Element/Datum: {Actor} abuses the {Dependence}.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{AdministrativeDetentionProceedings}	Element/Datum: proceedings for administrative detention.?	Boolean
Q4	Session	{AllowsTargetToPerform}	Element/Datum: {Actor} allows {Person} to perform the act on {Actor}.?	Boolean
Q5	Session	{AppointedToParticipate}	Element/Datum: {Actor} is appointed to participate.?	Boolean
Q6	Session	{Causes}	Element/Datum: {Actor} causes {Person}.?	Boolean
Q7	Session	{CriminalProceedings}	Element/Datum: criminal proceedings.?	Boolean
Q8	Session	{CustodialMeasureProceedings}	Element/Datum: proceedings for the imposition of a custodial measure.?	Boolean
Q9	Session	{Dependence}	Element/Datum: the dependence created by the proceedings.?	Party
Q10	Session	{IsPublicOfficial}	Element/Datum: {Actor} is a public official.?	Boolean
Q11	Session	{PerformsOnTarget}	Element/Datum: {Actor} performs the act on {Person}.?	Boolean
Q12	Session	{Person}	Element/Datum: the person against whom the proceedings are directed.?	Party
Q13	Session	{TargetPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on a {ThirdPerson}.?	Boolean
Q14	Session	{TargetToleratesByThirdPerson}	Element/Datum: {Person} tolerates the act by a {ThirdPerson}.?	Boolean
Q15	Session	{ThirdPerson}	Element/Datum: a third person.?	Party

FLAGS

WHOLE SECTION Paragraph 1, the public-official proceedings variant with its third-person extension; attempt in (2) struck.

TEN-RULE SWEEP Fused verb-object Booleans separated: the appointment verb **{AppointedToParticipate}** now spans the coordinated proceeding-type objects **{CriminalProceedings}**, **{CustodialMeasureProceedings}** and **{AdministrativeDetentionProceedings}**, with the disjunction in **[ProceedingType]**; the abuse verb **{Abuses}** acts on the single uncoordinated object **{Dependence}**, which stays a reference variable (rules 1, 2, 7, 10).

TARGET AS VARIABLE **{Person}** carries the person against whom the proceedings are directed (rule 3).

SEXUAL ACT **[SexualActs]** (§184h, by name) for every occurrence.

STRIKES The penalty in (1) and the attempt in (2) struck in the markup only; the source column is clean.

TREATMENT §174b is Human-awareness-tagged. Encoded on its objective elements, consistent with the §174 precedent.

§174c · Sexual abuse by exploiting a counselling, treatment or care relationship

AbuseOfTreatmentRelationship · provenance StGB 174c · full section (1)-(3) · ten-rule sweep

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who performs sexual acts on a person who is entrusted to them, on account of a mental or psychological illness or disability including addiction, or a physical illness or disability, for counselling, treatment or care, by abusing the counselling, treatment or care relationship, or has such acts performed on themselves by that person, or directs that person to perform or tolerate sexual acts on or by a third person, shall be punished with imprisonment for a term of three months to five years. (2) A person who, by abusing the therapeutic relationship, performs sexual acts on a person entrusted to them for psychotherapeutic treatment, or causes such acts to be performed on them, or directs that person to perform or tolerate sexual acts on or by a third person, shall be punished in the same way. (3) An attempt is punishable.	«if AbuseOfTreatmentRelationship is true»(1) {Actor} «if {PerformsOnVictim} is true»performs [SexualActs] on {Person} «end if» who «if {Entrusted} is true»is entrusted to {Actor}, on account of «if {MentalIllness} is true»a mental illness «end if» «if {PsychologicalIllness} is true»or psychological illness «end if» «if {MentalDisability} is true»or a mental disability «end if» «if {PsychologicalDisability} is true»or psychological disability «end if» «if {Addiction} is true»including an addiction «end if» «if {PhysicalIllness} is true»or a physical illness «end if» «if {PhysicalDisability} is true»or physical disability «end if», for «if {Counselling} is true»counselling «end if» «if {Treatment} is true», treatment «end if» «if {Care} is true»or care «end if» «end if», by «if {Abuses} is true»abusing the «if {Counselling} is true»counselling «end if» «if {Treatment} is true», treatment «end if» «if {Care} is true»or care «end if» {Relationship} «end if», or «if {HasVictimPerformOnActor} is true»has [SexualActs] performed on themselves by {Person} «end if», or «if {Directs} is true»directs «end if» {Person} to «if {VictimPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate [SexualActs] by a {ThirdPerson} «end if», shall be punished with imprisonment for a term of three months to five years. (2) {Actor}, by «if {Abuses} is true»abusing the «if {TherapeuticRelationship} is true»therapeutic relationship «end if» «end if», «if {PerformsOnVictim} is true»performs [SexualActs] on {Person} «end if» «if {Entrusted} is true»entrusted to {Actor} «if {Psychotherapy} is true»for psychotherapeutic treatment «end if» «end if», or «if {HasVictimPerformOnActor} is true»causes such acts to be performed on them «end if», or «if {Directs} is true»directs «end if» {Person} to «if {VictimPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate [SexualActs] by a {ThirdPerson} «end if», shall be punished in the same way. (3) An attempt is punishable.«end if»
ANNEXES	
COMPUTABLES	

[ThirdPersonConduct] = Directs is true and (VictimPerformsOnThirdPerson is true or VictimToleratesByThirdPerson is true)

[EntrustmentPurpose] = Counselling is true or Treatment is true or Care is true

[EntrustmentGround] = MentalIllness is true or PsychologicalIllness is true or MentalDisability is true or PsychologicalDisability is true or Addiction is true or PhysicalIllness is true or PhysicalDisability is true

[Para1Relationship] = Entrusted is true and EntrustmentGround is true and EntrustmentPurpose is true

[RelationshipAbuse] = Abuses is true and EntrustmentPurpose is true

[Conduct] = PerformsOnVictim is true or HasVictimPerformOnActor is true or ThirdPersonConduct is true

[Para1] = SexualActs is true and Para1Relationship is true and RelationshipAbuse is true and Conduct is true

[Para2Relationship] = Entrusted is true and Psychotherapy is true

[TherapeuticAbuse] = Abuses is true and TherapeuticRelationship is true

[Para2] = SexualActs is true and Para2Relationship is true and TherapeuticAbuse is true and Conduct is true

[AbuseOfTreatmentRelationship] = Para1 is true or Para2 is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
ATR-R01	CONDITION	None		Entrusted is true
ATR-R02	CONDITION	None		MentalIllness is true
ATR-R03	CONDITION	None		PsychologicalIllness is true
ATR-R04	CONDITION	None		MentalDisability is true
ATR-R05	CONDITION	None		PsychologicalDisability is true
ATR-R06	CONDITION	None		Addiction is true
ATR-R07	CONDITION	None		PhysicalIllness is true
ATR-R08	CONDITION	None		PhysicalDisability is true
ATR-R09	CONDITION	None		Counselling is true
ATR-R10	CONDITION	None		Treatment is true
ATR-R11	CONDITION	None		Care is true
ATR-R12	ACT	Actor		Abuses is true
ATR-R13	CONDITION	None		TherapeuticRelationship is true
ATR-R14	CONDITION	None		Psychotherapy is true
ATR-R15	ACT	Actor		PerformsOnVictim is true
ATR-R16	ACT	Actor		HasVictimPerformOnActor is true
ATR-R17	ACT	Actor		Directs is true
ATR-R18	CONDITION	None		VictimPerformsOnThirdPerson is true
ATR-R19	CONDITION	None		VictimToleratesByThirdPerson is true
ATR-R90	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
ATR-P0	PROHIBITION	Actor	not realise	not AbuseOfTreatmentRelationship

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Person} is entrusted to {Actor}	Merkmal	{Entrusted}	ATR-R01	is true
a mental illness	Merkmal	{MentalIllness}	ATR-R02	is true
a psychological illness	Merkmal	{PsychologicalIllness}	ATR-R03	is true
a mental disability	Merkmal	{MentalDisability}	ATR-R04	is true
a psychological disability	Merkmal	{PsychologicalDisability}	ATR-R05	is true
an addiction	Merkmal	{Addiction}	ATR-R06	is true
a physical illness	Merkmal	{PhysicalIllness}	ATR-R07	is true
a physical disability	Merkmal	{PhysicalDisability}	ATR-R08	is true
counselling	Merkmal	{Counselling}	ATR-R09	is true
treatment	Merkmal	{Treatment}	ATR-R10	is true
care	Merkmal	{Care}	ATR-R11	is true
{Actor} abuses the {Relationship}	Merkmal	{Abuses}	ATR-R12	is true
the relationship is a therapeutic relationship	Merkmal	{TherapeuticRelationship}	ATR-R13	is true

psychotherapeutic treatment is the purpose of the entrustment	Merkmal	{ Psychotherapy }	ATR-R14	is true
{Actor} performs the act on {Person}	Merkmal	{ PerformsOnVictim }	ATR-R15	is true
{Actor} has {Person} perform the act on {Actor}	Merkmal	{ HasVictimPerformOnActor }	ATR-R16	is true
{Actor} directs {Person}	Merkmal	{ Directs }	ATR-R17	is true
{Person} performs the act on a {ThirdPerson}	Merkmal	{ VictimPerformsOnThirdPerson }	ATR-R18	is true
{Person} tolerates the act by a {ThirdPerson}	Merkmal	{ VictimToleratesByThirdPerson }	ATR-R19	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Abuses}	Boolean	true / false / unknown	Session	{Actor} abuses the {Relationship}
{Actor}	Reference	–	Session	any person (the actor)
{Addiction}	Boolean	true / false / unknown	Session	an addiction
{Care}	Boolean	true / false / unknown	Session	care
{Counselling}	Boolean	true / false / unknown	Session	counselling
{Directs}	Boolean	true / false / unknown	Session	{Actor} directs {Person}
{Entrusted}	Boolean	true / false / unknown	Session	{Person} is entrusted to {Actor}
{HasVictimPerformOnActor}	Boolean	true / false / unknown	Session	{Actor} has {Person} perform the act on {Actor}
{MentalDisability}	Boolean	true / false / unknown	Session	a mental disability
{MentalIllness}	Boolean	true / false / unknown	Session	a mental illness
{PerformsOnVictim}	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
{Person}	Party	–	Session	the entrusted person
{PhysicalDisability}	Boolean	true / false / unknown	Session	a physical disability
{PhysicalIllness}	Boolean	true / false / unknown	Session	a physical illness
{PsychologicalDisability}	Boolean	true / false / unknown	Session	a psychological disability
{PsychologicalIllness}	Boolean	true / false / unknown	Session	a psychological illness
{Psychotherapy}	Boolean	true / false / unknown	Session	psychotherapeutic treatment is the purpose of the entrustment
{Relationship}	Party	–	Session	the relationship of entrustment
{TherapeuticRelationship}	Boolean	true / false / unknown	Session	the relationship is a therapeutic relationship
{ThirdPerson}	Party	–	Session	a third person
{Treatment}	Boolean	true / false / unknown	Session	treatment
{VictimPerformsOnThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act on a {ThirdPerson}
{VictimToleratesByThirdPerson}	Boolean	true / false / unknown	Session	{Person} tolerates the act by a {ThirdPerson}

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (the act is a sexual act within the meaning of §184h and ({Person} is entrusted to {Actor} and (a mental illness or a psychological illness or a mental disability or a psychological disability or an addiction or a physical illness or a physical disability) and (counselling or treatment or care)) and ({Actor} abuses the {Relationship} and (counselling or treatment or care)) and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor} or ({Actor} directs {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson})))) or (the act is a sexual act within the meaning of §184h and ({Person} is entrusted to {Actor} and psychotherapeutic treatment is the purpose of the entrustment) and ({Actor} abuses the {Relationship} and the relationship is a therapeutic relationship) and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor} or ({Actor} directs {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson}))))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ThirdPersonConduct]	Directs, VictimPerformsOnThirdPerson, VictimToleratesByThirdPerson	false	Recomputes when any input changes; propagates into the composite.
[EntrustmentPurpose]	Counselling, Treatment, Care	false	Recomputes when any input changes; propagates into the composite.
[EntrustmentGround]	MentalIllness, PsychologicalIllness, MentalDisability, PsychologicalDisability, Addiction, PhysicalIllness, PhysicalDisability	false	Recomputes when any input changes; propagates into the composite.
[Para1Relationship]	Entrusted, EntrustmentGround, EntrustmentPurpose	false	Recomputes when any input changes; propagates into the composite.
[RelationshipAbuse]	Abuses, EntrustmentPurpose	false	Recomputes when any input changes; propagates into the composite.
[Conduct]	PerformsOnVictim, HasVictimPerformOnActor, ThirdPersonConduct	false	Recomputes when any input changes; propagates into the composite.
[Para1]	SexualActs, Para1Relationship, RelationshipAbuse, Conduct	false	Recomputes when any input changes; propagates into the composite.
[Para2Relationship]	Entrusted, Psychotherapy	false	Recomputes when any input changes; propagates into the composite.
[TherapeuticAbuse]	Abuses, TherapeuticRelationship	false	Recomputes when any input changes; propagates into the composite.
[Para2]	SexualActs, Para2Relationship, TherapeuticAbuse, Conduct	false	Recomputes when any input changes; propagates into the composite.

<code>[AbuseOfTreatmentRelationship]</code>	<code>Para1, Para2</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (ATR-P0)	<code>[AbuseOfTreatmentRelationship]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session) <code>{Abuses}</code> <code>{Actor}</code> <code>{Addiction}</code> <code>{Care}</code> <code>{Counselling}</code> <code>{Directs}</code> <code>{Entrusted}</code> <code>{HasVictimPerformOnActor}</code> <code>{MentalDisability}</code> <code>{MentalIllness}</code> <code>{PerformsOnVictim}</code> <code>{Person}</code> <code>{PhysicalDisability}</code> <code>{PhysicalIllness}</code> <code>{PsychologicalDisability}</code> <code>{PsychologicalIllness}</code> <code>{Psychotherapy}</code> <code>{Relationship}</code> <code>{TherapeuticRelationship}</code> <code>{ThirdPerson}</code> <code>{Treatment}</code> <code>{VictimPerformsOnThirdPerson}</code> <code>{VictimToleratesByThirdPerson}</code> ↓ PHASE 2: evaluate act / intermediate computables <code>[ThirdPersonConduct]</code> = <code>Directs</code> is true and (<code>VictimPerformsOnThirdPerson</code> is true or <code>VictimToleratesByThirdPerson</code> is true) <code>[EntrustmentPurpose]</code> = <code>Counselling</code> is true or <code>Treatment</code> is true or <code>Care</code> is true <code>[EntrustmentGround]</code> = <code>MentalIllness</code> is true or <code>PsychologicalIllness</code> is true or <code>MentalDisability</code> is true or <code>PsychologicalDisability</code> is true or <code>Addiction</code> is true or <code>PhysicalIllness</code> is true or <code>PhysicalDisability</code> is true <code>[Para1Relationship]</code> = <code>Entrusted</code> is true and <code>EntrustmentGround</code> is true and <code>EntrustmentPurpose</code> is true <code>[RelationshipAbuse]</code> = <code>Abuses</code> is true and <code>EntrustmentPurpuse</code> is true <code>[Conduct]</code> = <code>PerformsOnVictim</code> is true or <code>HasVictimPerformOnActor</code> is true or <code>ThirdPersonConduct</code> is true <code>[Para1]</code> = <code>SexualActs</code> is true and <code>Para1Relationship</code> is true and <code>RelationshipAbuse</code> is true and <code>Conduct</code> is true <code>[Para2Relationship]</code> = <code>Entrusted</code> is true and <code>Psychotherapy</code> is true <code>[TherapeuticAbuse]</code> = <code>Abuses</code> is true and <code>TherapeuticRelationship</code> is true <code>[Para2]</code> = <code>SexualActs</code> is true and <code>Para2Relationship</code> is true and <code>TherapeuticAbuse</code> is true and <code>Conduct</code> is true <code>[SexualActs]</code> composed by name (the sexual-act term in §184h) ↓ PHASE 3: evaluate the objective conditions <code>[AbuseOfTreatmentRelationship]</code> = <code>Para1</code> is true or <code>Para2</code> is true ↓ VERDICT (PrimeRule) <code>[AbuseOfTreatmentRelationship]</code> is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions) <code>[AbuseOfTreatmentRelationship]</code> is false → not realised
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RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- `[AbuseOfTreatmentRelationship]` depends on `[ThirdPersonConduct]`, `[EntrustmentPurpose]`, `[EntrustmentGround]`, `[Para1Relationship]`, `[RelationshipAbuse]`, `[Conduct]`, `[Para1]`, `[Para2Relationship]`, `[TherapeuticAbuse]`, `[Para2]` plus composed `[SexualActs]`; none refer back to `[AbuseOfTreatmentRelationship]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	<code>{Abuses}</code>	Element/Datum: {Actor} abuses the {Relationship}.?	Boolean
Q2	Session	<code>{Actor}</code>	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	<code>{Addiction}</code>	Element/Datum: an addiction.?	Boolean
Q4	Session	<code>{Care}</code>	Element/Datum: care.?	Boolean
Q5	Session	<code>{Counselling}</code>	Element/Datum: counselling.?	Boolean
Q6	Session	<code>{Directs}</code>	Element/Datum: {Actor} directs {Person}.?	Boolean
Q7	Session	<code>{Entrusted}</code>	Element/Datum: {Person} is entrusted to {Actor}.?	Boolean
Q8	Session	<code>{HasVictimPerformOnActor}</code>	Element/Datum: {Actor} has {Person} perform the act on {Actor}.?	Boolean
Q9	Session	<code>{MentalDisability}</code>	Element/Datum: a mental disability.?	Boolean
Q10	Session	<code>{MentalIllness}</code>	Element/Datum: a mental illness.?	Boolean
Q11	Session	<code>{PerformsOnVictim}</code>	Element/Datum: {Actor} performs the act on {Person}.?	Boolean
Q12	Session	<code>{Person}</code>	Element/Datum: the entrusted person.?	Party
Q13	Session	<code>{PhysicalDisability}</code>	Element/Datum: a physical disability.?	Boolean
Q14	Session	<code>{PhysicalIllness}</code>	Element/Datum: a physical illness.?	Boolean

Q15	Session	{PsychologicalDisability}	Element/Datum: a psychological disability.?	Boolean
Q16	Session	{PsychologicalIllness}	Element/Datum: a psychological illness.?	Boolean
Q17	Session	{Psychotherapy}	Element/Datum: psychotherapeutic treatment is the purpose of the entrustment.?	Boolean
Q18	Session	{Relationship}	Element/Datum: the relationship of entrustment.?	Party
Q19	Session	{TherapeuticRelationship}	Element/Datum: the relationship is a therapeutic relationship.?	Boolean
Q20	Session	{ThirdPerson}	Element/Datum: a third person.?	Party
Q21	Session	{Treatment}	Element/Datum: treatment.?	Boolean
Q22	Session	{VictimPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on a {ThirdPerson}.?	Boolean
Q23	Session	{VictimToleratesByThirdPerson}	Element/Datum: {Person} tolerates the act by a {ThirdPerson}.?	Boolean

FLAGS

- WHOLE SECTION** Paragraph 1, the counselling, treatment or care relationship with its grounds of entrustment and third-person extension; paragraph 2, the psychotherapeutic variant; attempt in (3) struck.
- TRANSLATION NOTES** The English of (1) follows the German in the source column: the dropped governing verb restored (**{Actor}** performs sexual acts on the entrusted person) and the ground of entrustment restored (on account of a mental or psychological illness or disability including addiction, or a physical illness or disability).
- TEN-RULE SWEEP** Fused verb-object Booleans separated: **{Entrusted}** is the status rule (rule 6) spanning the seven coordinated ground objects (**{MentalIllness}**, **{PsychologicalIllness}**, **{MentalDisability}**, **{PsychologicalDisability}**, **{Addiction}**, **{PhysicalIllness}**, **{PhysicalDisability}**, disjunction in **{EntrustmentGround}**) and the three purpose objects (**{Counselling}**, **{Treatment}**, **{Care}**, disjunction in **{EntrustmentPurpose}**); **{Abuses}** spans the same purpose objects qualifying the **{Relationship}** in paragraph 1, and the **{TherapeuticRelationship}** object in paragraph 2 (rules 1, 2, 5, 7, 10).
- PURPOSE VARIABLES REUSED** **{Counselling}**, **{Treatment}** and **{Care}** carry the same Merkmal in the entrustment purpose and in the abused relationship; one variable each, consumed by both computables.
- SEXUAL ACT** **[SexualActs]** (§184h, by name) for every occurrence.
- STRIKES** Penalties in (1) and (2) (including “Ebenso wird bestraft” per the marked-up source) and the attempt in (3) struck in the markup only; the source column is clean.
- TREATMENT** §174c is Human-awareness-tagged. Encoded on its objective elements, consistent with the §174 precedent.

§176 · Sexual abuse of children

SexualAbuseOfChildren · provenance StGB 176 · (1) encoded, (2) struck · authors the child definition

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) A person shall be liable to imprisonment for a term of not less than one year if 1. performs sexual acts on a person under the age of fourteen (a child) or allows the child to perform such acts on them, 2. causes a child to perform sexual acts on a third person or to allow a third person to perform sexual acts on them, 3. offers a child for an act under point 1 or point 2 or promises to provide such a child. (2) In the cases referred to in paragraph 1, point 1, the court may refrain from imposing a penalty under this provision if the sexual act between the offender and the child is consensual and the difference in both age and stage of development or maturity is minor, unless the offender exploits the child’s lack of capacity for sexual self-determination.	«if SexualAbuseOfChildren is true»(1) {Actor} shall be liable to imprisonment for a term of not less than one year if 1. «if {Performs} is true»performs [SexualActs] on {Person} «if [Child] is true»under the age of {AgeLimit14} (a child) «end if» «end if» «if {AllowsChildToPerform} is true»or allows the child to perform such acts on {Actor} «end if», 2. «if {Causes} is true»causes «end if» «if [Child] is true»a child «end if» to «if {ChildPerformsOnThirdPerson} is true»perform [SexualActs] on a {ThirdPerson} «end if» «if {ChildAllowsThirdPersonToPerform} is true»or to allow a {ThirdPerson} to perform [SexualActs] on {Person} «end if», 3. «if {Offers} is true»offers «if [Child] is true»a child «end if» for «if {ActUnderPoint1} is true»an act under point 1 «end if» «if {ActUnderPoint2} is true»or point 2 «end if» «end if» «if {Promises} is true»or promises to provide such a child «end if». (2) In the cases referred to in paragraph 1, point 1, the court may refrain from imposing a penalty under this provision if the sexual act between the offender and the child is consensual and the difference in both age and stage of development or maturity is minor, unless the offender exploits the child’s lack of capacity for sexual self-determination.«end if»

ANNEXES

COMPUTABLES

[OfferedAct] = **ActUnderPoint1** is true or **ActUnderPoint2** is true

[Child] = **PersonAge** < **AgeLimit14**

[Leg3] = **Child** is true and ((**Offers** is true and **OfferedAct** is true) or **Promises** is true)

[Leg1] = **SexualActs** is true and **Child** is true and (**Performs** is true or **AllowsChildToPerform** is true)

[Leg2] = **SexualActs** is true and **Child** is true and **Causes** is true and (**ChildPerformsOnThirdPerson** is true or **ChildAllowsThirdPersonToPerform** is true)

[SexualAbuseOfChildren] = **Leg1** is true or **Leg2** is true or **Leg3** is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SAC-R01	ACT	Actor		Performs is true

SAC-R02	ACT	Actor		AllowsChildToPerform is true
SAC-R03	ACT	Actor		Causes is true
SAC-R04	CONDITION	None		ChildPerformsOnThirdPerson is true
SAC-R05	CONDITION	None		ChildAllowsThirdPersonToPerform is true
SAC-R06	ACT	Actor		Offers is true
SAC-R07	CONDITION	None		ActUnderPoint1 is true
SAC-R08	CONDITION	None		ActUnderPoint2 is true
SAC-R09	ACT	Actor		Promises is true
SAC-R90	CONDITION	None	the person is under the age of fourteen (a child)	Child is true
SAC-R91	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
SAC-P0	PROHIBITION	Actor	not realise	not SexualAbuseOfChildren

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
A person ... if	Tätersubjekt	{Actor}	–	in scope
{Actor} performs the act on {Person}	Merkmal	{Performs}	SAC-R01	is true
{Actor} allows {Person} to perform the act on {Actor}	Merkmal	{AllowsChildToPerform}	SAC-R02	is true
{Actor} causes {Person}	Merkmal	{Causes}	SAC-R03	is true
{Person} performs the act on a {ThirdPerson}	Merkmal	{ChildPerformsOnThirdPerson}	SAC-R04	is true
{Person} allows a {ThirdPerson} to perform the act on {Person}	Merkmal	{ChildAllowsThirdPersonToPerform}	SAC-R05	is true
{Actor} offers {Person} for the referenced act	Merkmal	{Offers}	SAC-R06	is true
an act under point 1	Merkmal	{ActUnderPoint1}	SAC-R07	is true
an act under point 2	Merkmal	{ActUnderPoint2}	SAC-R08	is true
{Actor} promises to provide such a child	Merkmal	{Promises}	SAC-R09	is true
(2) judicial discretion for consensual peer acts	subjective / judicial	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{ActUnderPoint1}	Boolean	true / false / unknown	Session	an act under point 1
{ActUnderPoint2}	Boolean	true / false / unknown	Session	an act under point 2
{Actor}	Reference	–	Session	any person (the actor)
{AgeLimit14}	Number	–	Session	fourteen years
{AllowsChildToPerform}	Boolean	true / false / unknown	Session	{Actor} allows {Person} to perform the act on {Actor}
{Causes}	Boolean	true / false / unknown	Session	{Actor} causes {Person}
{ChildAllowsThirdPersonToPerform}	Boolean	true / false / unknown	Session	{Person} allows a {ThirdPerson} to perform the act on {Person}
{ChildPerformsOnThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act on a {ThirdPerson}
{Offers}	Boolean	true / false / unknown	Session	{Actor} offers {Person} for the referenced act
{Performs}	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
{Person}	Party	–	Session	the protected person
{PersonAge}	Number	–	Session	the age of {Person} in years
{Promises}	Boolean	true / false / unknown	Session	{Actor} promises to provide such a child
{ThirdPerson}	Party	–	Session	a third person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (the act is a sexual act within the meaning of §184h and (PersonAge < AgeLimit14) and ({Actor} performs the act on {Person} or {Actor} allows {Person} to perform the act on {Actor})) or (the act is a sexual act within the meaning of §184h and (PersonAge < AgeLimit14) and {Actor} causes {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} allows a {ThirdPerson} to perform the act on {Person})) or ((PersonAge < AgeLimit14) and (({Actor} offers {Person} for the referenced act and (an act under point 1 or an act under point 2)) or {Actor} promises to provide such a child)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[OfferedAct]	ActUnderPoint1, ActUnderPoint2	false	Recomputes when any input changes; propagates into the composite.
[Child]	PersonAge, AgeLimit14	false	Recomputes when any input changes; propagates into the composite.
[Leg3]	Child, Offers, OfferedAct, Promises	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	SexualActs, Child, Performs, AllowsChildToPerform	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	SexualActs, Child, Causes, ChildPerformsOnThirdPerson, ChildAllowsThirdPersonToPerform	false	Recomputes when any input changes; propagates into the composite.
[SexualAbuseOfChildren]	Leg1, Leg2, Leg3	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.

prohibition (SAC-P0)	[SexualAbuseOfChildren]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.
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DECISION TREE

PHASE 1: gather inputs (Session)

{ActUnderPoint1}

{ActUnderPoint2}

{Actor}

{AgeLimit14}

{AllowsChildToPerform}

{Causes}

{ChildAllowsThirdPersonToPerform}

{ChildPerformsOnThirdPerson}

{Offers}

{Performs}

{Person}

{PersonAge}

{Promises}

{ThirdPerson}

↓

PHASE 2: evaluate act / intermediate computables

[OfferedAct] = ActUnderPoint1 is true or ActUnderPoint2 is true

[Child] = PersonAge < AgeLimit14

[Leg3] = Child is true and ((Offers is true and OfferedAct is true) or Promises is true)

[Leg1] = SexualActs is true and Child is true and (Performs is true or AllowsChildToPerform is true)

[Leg2] = SexualActs is true and Child is true and Causes is true and (ChildPerformsOnThirdPerson is true or ChildAllowsThirdPersonToPerform is true)

[SexualActs] composed by name (the sexual-act term in §184h)

↓

PHASE 3: evaluate the objective conditions

[SexualAbuseOfChildren] = Leg1 is true or Leg2 is true or Leg3 is true

↓

VERDICT (PrimeRule)

[SexualAbuseOfChildren] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[SexualAbuseOfChildren] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [SexualAbuseOfChildren] depends on [OfferedAct], [Child], [Leg3], [Leg1], [Leg2] plus composed [SexualActs]; none refer back to [SexualAbuseOfChildren]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{ActUnderPoint1}	Element/Datum: an act under point 1.?	Boolean
Q2	Session	{ActUnderPoint2}	Element/Datum: an act under point 2.?	Boolean
Q3	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q4	Session	{AgeLimit14}	Element/Datum: fourteen years.?	Number
Q5	Session	{AllowsChildToPerform}	Element/Datum: {Actor} allows {Person} to perform the act on {Actor}.?	Boolean
Q6	Session	{Causes}	Element/Datum: {Actor} causes {Person}.?	Boolean
Q7	Session	{ChildAllowsThirdPersonToPerform}	Element/Datum: {Person} allows a {ThirdPerson} to perform the act on {Person}.?	Boolean
Q8	Session	{ChildPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on a {ThirdPerson}.?	Boolean
Q9	Session	{Offers}	Element/Datum: {Actor} offers {Person} for the referenced act.?	Boolean
Q10	Session	{Performs}	Element/Datum: {Actor} performs the act on {Person}.?	Boolean
Q11	Session	{Person}	Element/Datum: the protected person.?	Party
Q12	Session	{PersonAge}	Element/Datum: the age of {Person} in years.?	Number
Q13	Session	{Promises}	Element/Datum: {Actor} promises to provide such a child.?	Boolean
Q14	Session	{ThirdPerson}	Element/Datum: a third person.?	Party

FLAGS

- SCOPE** Paragraph 1, the three legs: performing on the child or allowing the child to perform; causing third-person conduct; offering or promising to provide a child. Paragraph 2 struck entirely per the marked-up source.
- CHILD DEFINITION AUTHORED HERE** §176(1)(1) defines the child: a person under the age of fourteen. Encoded as the threshold rule **[Child] = {PersonAge} < {AgeLimit14}**, the limit a named-number variable, the comparison in the computable (encoding principles). §176a, §176b and §176e consume the same construction; pending cross-schema by-name machinery, each section restates **[Child]** locally and this annex records §176 as the authoring provision.
- STATUTORY CROSS-REFERENCES AS OBJECTS** “an act under point 1 or point 2” in leg 3 is encoded as the coordinated reference objects **{ActUnderPoint1}** and **{ActUnderPoint2}** inside the **{Offers}** span, the disjunction in **[OfferedAct]** (rule 10); the runtime resolves the referenced act types through **[Leg1]** and **[Leg2]**.
- PARAGRAPH 2 STRUCK** The judicial discretion for consensual acts between peers close in age and maturity is struck whole per the markup: it turns on consensuality, developmental proximity and exploitation of capacity, all judgement-laden, and on a discretion (“may refrain”), not a rule.
- SEXUAL ACT** **[SexualActs]** (§184h, by name) for every occurrence.
- STRIKES** The penalty in (1) and the whole of (2) struck in the markup only; the source column is clean.

§176a · Sexual abuse of children without physical contact

SexualAbuseOfChildrenWithoutContact · provenance StGB 176a · (1)-(2) encoded, (3) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) A person shall be liable to imprisonment for a term of between six months and ten years if 1. performs sexual acts in the presence of a child or allows a third person to perform such acts on them in the presence of a child, 2. causes a child to perform sexual acts, provided that the act is not punishable under Section 176(1)(1) or (2), or 3. exerts influence on a child through pornographic material (Section 11(3)) or through corresponding speech. (2) A person who offers a child for an act under paragraph 1 or promises to provide one, or who conspires with another to commit such an act, shall also be punished. (3) An attempt is punishable in the cases referred to in paragraph 1, points 1 and 2. In the case of acts under paragraph 1, point 3, an attempt is punishable in cases where the completion of the act fails solely because the perpetrator mistakenly assumes that their influence relates to a child.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if SexualAbuseOfChildrenWithoutContact is true»(1) {Actor} shall-be liable to imprisonment for a term of between six months and ten years if 1. «if {Performs} is true»performs [SexualActs] «if {InPresenceOfChild} is true»in the presence of «if [Child] is true»a child «end if» «end if» «end if» «if {AllowsThirdPersonToPerformOnActor} is true»or allows a {ThirdPerson} to perform such acts on {Actor} «if {InPresenceOfChild} is true»in the presence of «if [Child] is true»a child «end if» «end if» «end if», 2. «if {Causes} is true»causes «if [Child] is true»a child «end if» to perform [SexualActs] «end if», «if [Subsidiarity] is true»provided that the act is not punishable under «if {PunishableUnder176No1} is true»Section 176(1) point 1 «end if» «if {PunishableUnder176No2} is true»or point 2 «end if» «end if», or 3. «if {ExertsInfluence} is true»exerts influence on «if [Child] is true»a child «end if» through «if {PornographicContent} is true»pornographic material (Section 11(3)) «end if» «if {CorrespondingSpeech} is true»or through corresponding speech «end if» «end if». (2) {Actor} who «if {Offers} is true»offers «if [Child] is true»a child «end if» for «if {ActUnderPara1} is true»an act under paragraph 1 «end if» «end if» «if {Promises} is true»or promises to provide one «end if», or «if {Conspires} is true»conspires with another to commit such an act «end if», shall also be punished. (3) An attempt is punishable in the cases referred to in paragraph 1, points 1 and 2. In the case of acts under paragraph 1, point 3, an attempt is punishable in cases where the completion of the act fails solely because the perpetrator mistakenly assumes that their influence relates to a child.«end if»

ANNEXES

COMPUTABLES

[Child] = PersonAge < AgeLimit14

[Subsidiarity] = not (PunishableUnder176No1 is true or PunishableUnder176No2 is true)

[Leg2] = SexualActs is true and Child is true and Causes is true and Subsidiarity is true

[InfluenceMeans] = PornographicContent is true or CorrespondingSpeech is true

[Leg1] = SexualActs is true and Child is true and InPresenceOfChild is true and (Performs is true or AllowsThirdPersonToPerformOnActor is true)

[Leg3] = Child is true and ExertsInfluence is true and InfluenceMeans is true

[Para1] = Leg1 is true or Leg2 is true or Leg3 is true

[Para2] = Child is true and ((Offers is true and ActUnderPara1 is true) or Promises is true or Conspires is true)

[SexualAbuseOfChildrenWithoutContact] = Para1 is true or Para2 is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SCW-R01	ACT	Actor		Performs is true
SCW-R02	CONDITION	None		InPresenceOfChild is true
SCW-R03	ACT	Actor		AllowsThirdPersonToPerformOnActor is true
SCW-R04	ACT	Actor		Causes is true
SCW-R05	CONDITION	None		PunishableUnder176No1 is true
SCW-R06	CONDITION	None		PunishableUnder176No2 is true
SCW-R07	ACT	Actor		ExertsInfluence is true
SCW-R08	CONDITION	None		PornographicContent is true
SCW-R09	CONDITION	None		CorrespondingSpeech is true
SCW-R10	ACT	Actor		Offers is true
SCW-R11	CONDITION	None		ActUnderPara1 is true
SCW-R12	ACT	Actor		Promises is true
SCW-R13	ACT	Actor		Conspires is true
SCW-R90	CONDITION	None	the person is under the age of fourteen (a child)	Child is true

SCW-R91	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
SCW-P0	PROHIBITION	Actor	not realise	not SexualAbuseOfChildrenWithoutContact

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
A person ... if	Tätersubjekt	{Actor}	–	in scope
{Actor} performs the act	Merkmal	{Performs}	SCW-R01	is true
the act takes place in the presence of the child	Merkmal	{InPresenceOfChild}	SCW-R02	is true
{Actor} allows a {ThirdPerson} to perform the act on {Actor}	Merkmal	{AllowsThirdPersonToPerformOnActor}	SCW-R03	is true
{Actor} causes the child to perform the act	Merkmal	{Causes}	SCW-R04	is true
the act is punishable under Section 176(1) point 1	Merkmal	{PunishableUnder176No1}	SCW-R05	is true
the act is punishable under Section 176(1) point 2	Merkmal	{PunishableUnder176No2}	SCW-R06	is true
{Actor} exerts influence on the child	Merkmal	{ExertsInfluence}	SCW-R07	is true
pornographic material within the meaning of Section 11(3)	Merkmal	{PornographicContent}	SCW-R08	is true
corresponding speech	Merkmal	{CorrespondingSpeech}	SCW-R09	is true
{Actor} offers the child for the referenced act	Merkmal	{Offers}	SCW-R10	is true
an act under paragraph 1	Merkmal	{ActUnderPara1}	SCW-R11	is true
{Actor} promises to provide such a child	Merkmal	{Promises}	SCW-R12	is true
{Actor} conspires with another to commit such an act	Merkmal	{Conspires}	SCW-R13	is true
(3) attempt and mistaken-child attempt	attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{ActUnderPara1}	Boolean	true / false / unknown	Session	an act under paragraph 1
{Actor}	Reference	–	Session	any person (the actor)
{AgeLimit14}	Number	–	Session	fourteen years
{AllowsThirdPersonToPerformOnActor}	Boolean	true / false / unknown	Session	{Actor} allows a {ThirdPerson} to perform the act on {Actor}
{Causes}	Boolean	true / false / unknown	Session	{Actor} causes the child to perform the act
{Conspires}	Boolean	true / false / unknown	Session	{Actor} conspires with another to commit such an act
{CorrespondingSpeech}	Boolean	true / false / unknown	Session	corresponding speech
{ExertsInfluence}	Boolean	true / false / unknown	Session	{Actor} exerts influence on the child
{InPresenceOfChild}	Boolean	true / false / unknown	Session	the act takes place in the presence of the child
{Offers}	Boolean	true / false / unknown	Session	{Actor} offers the child for the referenced act
{Performs}	Boolean	true / false / unknown	Session	{Actor} performs the act
{PersonAge}	Number	–	Session	the age of {Person} in years
{PornographicContent}	Boolean	true / false / unknown	Session	pornographic material within the meaning of Section 11(3)
{Promises}	Boolean	true / false / unknown	Session	{Actor} promises to provide such a child
{PunishableUnder176No1}	Boolean	true / false / unknown	Session	the act is punishable under Section 176(1) point 1
{PunishableUnder176No2}	Boolean	true / false / unknown	Session	the act is punishable under Section 176(1) point 2
{ThirdPerson}	Party	–	Session	a third person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((the act is a sexual act within the meaning of §184h and (PersonAge < AgeLimit14) and the act takes place in the presence of the child and ({Actor} performs the act or {Actor} allows a {ThirdPerson} to perform the act on {Actor}))) or (the act is a sexual act within the meaning of §184h and (PersonAge < AgeLimit14) and {Actor} causes the child to perform the act and (not (the act is punishable under Section 176(1) point 1 or the act is punishable under Section 176(1) point 2))) or ((PersonAge < AgeLimit14) and {Actor} exerts influence on the child and (pornographic material within the meaning of Section 11(3) or corresponding speech))) or ((PersonAge < AgeLimit14) and (({Actor} offers the child for the referenced act and an act under paragraph 1) or {Actor} promises to provide such a child or {Actor} conspires with another to commit such an act)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Child]	PersonAge, AgeLimit14	false	Recomputes when any input changes; propagates into the composite.
[Subsidiarity]	PunishableUnder176No1, PunishableUnder176No2	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	SexualActs, Child, Causes, Subsidiarity	false	Recomputes when any input changes; propagates into the composite.
[InfluenceMeans]	PornographicContent, CorrespondingSpeech	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	SexualActs, Child, InPresenceOfChild, Performs, AllowsThirdPersonToPerformOnActor	false	Recomputes when any input changes; propagates into the composite.
[Leg3]	Child, ExertsInfluence, InfluenceMeans	false	Recomputes when any input changes; propagates into the composite.

[Para1]	Leg1, Leg2, Leg3	false	Recomputes when any input changes; propagates into the composite.
[Para2]	Child, Offers, ActUnderPara1, Promises, Conspires	false	Recomputes when any input changes; propagates into the composite.
[SexualAbuseOfChildrenWithoutContact]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SCW-P0)	[SexualAbuseOfChildrenWithoutContact]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

```
PHASE 1: gather inputs (Session)
├ {ActUnderPara1}
├ {Actor}
├ {AgeLimit14}
├ {AllowsThirdPersonToPerformOnActor}
├ {Causes}
├ {Conspires}
├ {CorrespondingSpeech}
├ {ExertsInfluence}
├ {InPresenceOfChild}
├ {Offers}
├ {Performs}
├ {PersonAge}
├ {PornographicContent}
├ {Promises}
├ {PunishableUnder176No1}
├ {PunishableUnder176No2}
├ {ThirdPerson}
↓
PHASE 2: evaluate act / intermediate computables
├ [Child] = PersonAge < AgeLimit14
├ [Subsidiarity] = not (PunishableUnder176No1 is true or PunishableUnder176No2 is true)
├ [Leg2] = SexualActs is true and Child is true and Causes is true and Subsidiarity is true
├ [InfluenceMeans] = PornographicContent is true or CorrespondingSpeech is true
├ [Leg1] = SexualActs is true and Child is true and InPresenceOfChild is true and (Performs is true or AllowsThirdPersonToPerformOnActor is true)
├ [Leg3] = Child is true and ExertsInfluence is true and InfluenceMeans is true
├ [Para1] = Leg1 is true or Leg2 is true or Leg3 is true
├ [Para2] = Child is true and ((Offers is true and ActUnderPara1 is true) or Promises is true or Conspires is true)
├ [SexualActs] composed by name (the sexual-act term in §184h)
↓
PHASE 3: evaluate the objective conditions
├ [SexualAbuseOfChildrenWithoutContact] = Para1 is true or Para2 is true
↓
VERDICT (PrimeRule)
├ [SexualAbuseOfChildrenWithoutContact] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
├ [SexualAbuseOfChildrenWithoutContact] is false → not realised
```

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [SexualAbuseOfChildrenWithoutContact] depends on [Child], [Subsidiarity], [Leg2], [InfluenceMeans], [Leg1], [Leg3], [Para1], [Para2] plus composed [SexualActs]; none refer back to [SexualAbuseOfChildrenWithoutContact]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{ActUnderPara1}	Element/Datum: an act under paragraph 1.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{AgeLimit14}	Element/Datum: fourteen years.?	Number
Q4	Session	{AllowsThirdPersonToPerformOnActor}	Element/Datum: {Actor} allows a {ThirdPerson} to perform the act on {Actor}.?	Boolean
Q5	Session	{Causes}	Element/Datum: {Actor} causes the child to perform the act.?	Boolean
Q6	Session	{Conspires}	Element/Datum: {Actor} conspires with another to commit such an act.?	Boolean
Q7	Session	{CorrespondingSpeech}	Element/Datum: corresponding speech.?	Boolean
Q8	Session	{ExertsInfluence}	Element/Datum: {Actor} exerts influence on the child.?	Boolean
Q9	Session	{InPresenceOfChild}	Element/Datum: the act takes place in the presence of the child.?	Boolean
Q10	Session	{Offers}	Element/Datum: {Actor} offers the child for the referenced act.?	Boolean
Q11	Session	{Performs}	Element/Datum: {Actor} performs the act.?	Boolean
Q12	Session	{PersonAge}	Element/Datum: the age of {Person} in years.?	Number
Q13	Session	{PornographicContent}	Element/Datum: pornographic material within the meaning of Section 11(3).?	Boolean
Q14	Session	{Promises}	Element/Datum: {Actor} promises to provide such a child.?	Boolean
Q15	Session	{PunishableUnder176No1}	Element/Datum: the act is punishable under Section 176(1) point 1.?	Boolean
Q16	Session	{PunishableUnder176No2}	Element/Datum: the act is punishable under Section 176(1) point 2.?	Boolean
Q17	Session	{ThirdPerson}	Element/Datum: a third person.?	Party

SCOPE Paragraph 1, the three without-contact legs (acts in the child’s presence; causing the child to perform, subsidiary to §176; influence through pornographic material or speech); paragraph 2, offering, promising or conspiring. Paragraph 3 (attempt, including the mistaken-child attempt rule) struck entirely per the marked-up source.

PRESENCE AS A NESTED RELATIONAL RULE “in the presence of a child” is the rule **{InPresenceOfChild}**, nested inside each of the two leg-1 conduct modalities it qualifies, with the age condition **[Child]** nested inside it (rules 4, 5, 7).

SUBSIDIARITY AS A NEGATIVE COMPUTABLE “provided that the act is not punishable under Section 176(1)(1) or (2)” is **[Subsidiarity]** = not (**{PunishableUnder176No1}** or **{PunishableUnder176No2}**); the two referenced points are coordinated reference objects because “point 1 or point 2” cannot live in one atomic surface (rules 8, 10, 12).

INFLUENCE MEANS AS COORDINATED OBJECTS **{ExertsInfluence}** spans the means objects **{PornographicContent}** and **{CorrespondingSpeech}**; the disjunction is **[InfluenceMeans]** (rules 1, 2, 10).

CHILD DEFINITION **[Child]** = **{PersonAge}** < **{AgeLimit14}**, restated locally; §176 is the authoring provision (see the §176 annex).

SEXUAL ACT **[SexualActs]** (§184h, by name) for every occurrence.

STRIKES The penalty in (1), “shall also be punished” in (2) (“Ebenso wird bestraft” in the marked-up German) and the whole of (3) struck in the markup only; the source column is clean.

TREATMENT §176a is Human-awareness-tagged. Encoded on its objective elements per the §174 precedent; the mistaken-child attempt rule in (3) is mental-state-dependent and is struck.

§176b · Preparation for the sexual abuse of children

PreparationOfSexualAbuseOfChildren · provenance StGB 176b · (1)-(2) encoded, (3) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) A person who influences a child through content (Section 11(3)) with the intention of 1. induce the child to perform sexual acts which the child is to perform on or in front of the offender or on or in front of a third person, or to allow the offender or a third person to perform such acts on the child, or 2. commit an offence under Section 184b(1), first sentence, point 3, or under Section 184b(3). (2) A person who offers a child for an act under paragraph 1 or promises to provide one, or who conspires with another to commit such an act, shall likewise be punished. (3) In the case of offences under paragraph 1, an attempt is punishable in cases where the offence is not completed solely because the offender mistakenly assumes that his or her actions relate to a child.	«if PreparationOfSexualAbuseOfChildren is true»(1) {Actor} shall be liable who «if {ExertsInfluence} is true»influences «if [Child] is true»a child «end if» through {Content} (Section 11(3)) «end if» with the intention of 1. «if {Induce} is true»induce the child to perform [SexualActs] which the child is to perform «if {OnActor} is true»on «end if» «if {InFrontOfActor} is true»or in front of «end if» {Actor} «if {OnThirdPerson} is true»or on «end if» «if {InFrontOfThirdPerson} is true»or in front of «end if» a {ThirdPerson}, or to «if {AllowsActorPerform} is true»allow {Actor} «end if» «if {AllowsThirdPersonPerform} is true»or a {ThirdPerson} «end if» to perform such acts on the child «end if», or 2. «if {CommitReferencedOffence} is true»commit an offence under «if {Under184b1S1N3} is true»Section 184b(1), first sentence, point 3 «end if» «if {Under184b3} is true»or under Section 184b(3) «end if» «end if». (2) {Actor} who «if {Offers} is true»offers «if [Child] is true»a child «end if» for «if {ActUnderPara1} is true»an act under paragraph 1 «end if» «end if» «if {Promises} is true»or promises to provide one «end if», or «if {Conspires} is true»conspires with another to commit such an act «end if», shall likewise be punished. (3) In the case of offences under paragraph 1, an attempt is punishable in cases where the offence is not completed solely because the offender mistakenly assumes that his or her actions relate to a child.«end if»

ANNEXES

COMPUTABLES

[ReferencedOffence] = Under184b1S1N3 is true or Under184b3 is true

[Child] = PersonAge < AgeLimit14

[Leg2] = CommitReferencedOffence is true and ReferencedOffence is true

[Para2] = Child is true and ((Offers is true and ActUnderPara1 is true) or Promises is true or Conspires is true)

[IntendedActs] = OnActor is true or InFrontOfActor is true or OnThirdPerson is true or InFrontOfThirdPerson is true or AllowsActorPerform is true or AllowsThirdPersonPerform is true

[Leg1] = SexualActs is true and Induce is true and IntendedActs is true

[Intention] = Leg1 is true or Leg2 is true

[Para1] = ExertsInfluence is true and Child is true and Intention is true

[PreparationOfSexualAbuseOfChildren] = Para1 is true or Para2 is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
PSA-R01	ACT	Actor		ExertsInfluence is true
PSA-R02	ACT	Actor		Induce is true
PSA-R03	CONDITION	None		OnActor is true
PSA-R04	CONDITION	None		InFrontOfActor is true

PSA-R05	CONDITION	None		OnThirdPerson is true
PSA-R06	CONDITION	None		InFrontOfThirdPerson is true
PSA-R07	CONDITION	None		AllowsActorPerform is true
PSA-R08	CONDITION	None		AllowsThirdPersonPerform is true
PSA-R09	ACT	Actor		CommitReferencedOffence is true
PSA-R10	CONDITION	None		Under184b1S1N3 is true
PSA-R11	CONDITION	None		Under184b3 is true
PSA-R12	ACT	Actor		Offers is true
PSA-R13	CONDITION	None		ActUnderPara1 is true
PSA-R14	ACT	Actor		Promises is true
PSA-R15	ACT	Actor		Conspires is true
PSA-R90	CONDITION	None	the person is under the age of fourteen (a child)	Child is true
PSA-R91	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
PSA-P0	PROHIBITION	Actor	not realise	not PreparationOfSexualAbuseOfChildren

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
A person who	Tätersubjekt	{Actor}	–	in scope
{Actor} influences the child through the {Content}	Merkmal	{ExertsInfluence}	PSA-R01	is true
{Actor} intends to induce the child to perform the act	Merkmal	{Induce}	PSA-R02	is true
the child is to perform the act on {Actor}	Merkmal	{OnActor}	PSA-R03	is true
the child is to perform the act in front of {Actor}	Merkmal	{InFrontOfActor}	PSA-R04	is true
the child is to perform the act on a {ThirdPerson}	Merkmal	{OnThirdPerson}	PSA-R05	is true
the child is to perform the act in front of a {ThirdPerson}	Merkmal	{InFrontOfThirdPerson}	PSA-R06	is true
the child is to allow {Actor} to perform the act on the child	Merkmal	{AllowsActorPerform}	PSA-R07	is true
the child is to allow a {ThirdPerson} to perform the act on the child	Merkmal	{AllowsThirdPersonPerform}	PSA-R08	is true
{Actor} intends to commit the referenced offence	Merkmal	{CommitReferencedOffence}	PSA-R09	is true
an offence under Section 184b(1) first sentence point 3	Merkmal	{Under184b1S1N3}	PSA-R10	is true
an offence under Section 184b(3)	Merkmal	{Under184b3}	PSA-R11	is true
{Actor} offers the child for the referenced act	Merkmal	{Offers}	PSA-R12	is true
an act under paragraph 1	Merkmal	{ActUnderPara1}	PSA-R13	is true
{Actor} promises to provide such a child	Merkmal	{Promises}	PSA-R14	is true
{Actor} conspires with another to commit such an act	Merkmal	{Conspires}	PSA-R15	is true
(3) mistaken–child attempt	attempt / mental	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{ActUnderPara1}	Boolean	true / false / unknown	Session	an act under paragraph 1
{Actor}	Reference	–	Session	any person (the actor)
{AgeLimit14}	Number	–	Session	fourteen years
{AllowsActorPerform}	Boolean	true / false / unknown	Session	the child is to allow {Actor} to perform the act on the child
{AllowsThirdPersonPerform}	Boolean	true / false / unknown	Session	the child is to allow a {ThirdPerson} to perform the act on the child
{CommitReferencedOffence}	Boolean	true / false / unknown	Session	{Actor} intends to commit the referenced offence
{Conspires}	Boolean	true / false / unknown	Session	{Actor} conspires with another to commit such an act
{Content}	Party	–	Session	content within the meaning of Section 11(3)
{ExertsInfluence}	Boolean	true / false / unknown	Session	{Actor} influences the child through the {Content}
{InFrontOfActor}	Boolean	true / false / unknown	Session	the child is to perform the act in front of {Actor}
{InFrontOfThirdPerson}	Boolean	true / false / unknown	Session	the child is to perform the act in front of a {ThirdPerson}
{Induce}	Boolean	true / false / unknown	Session	{Actor} intends to induce the child to perform the act
{Offers}	Boolean	true / false / unknown	Session	{Actor} offers the child for the referenced act
{OnActor}	Boolean	true / false / unknown	Session	the child is to perform the act on {Actor}
{OnThirdPerson}	Boolean	true / false / unknown	Session	the child is to perform the act on a {ThirdPerson}
{PersonAge}	Number	–	Session	the age of {Person} in years
{Promises}	Boolean	true / false / unknown	Session	{Actor} promises to provide such a child
{ThirdPerson}	Party	–	Session	a third person
{Under184b1S1N3}	Boolean	true / false / unknown	Session	an offence under Section 184b(1) first sentence point 3
{Under184b3}	Boolean	true / false / unknown	Session	an offence under Section 184b(3)

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ({Actor} influences the child through the {Content} and (PersonAge < AgeLimit14) and ((the act is a sexual act within the meaning of §184h and {Actor} intends to induce the child to perform the act and (the child is to perform the act on {Actor} or the child is to perform the act in front of {Actor} or the child is

to perform the act on a {ThirdPerson} or the child is to perform the act in front of a {ThirdPerson} or the child is to allow {Actor} to perform the act on the child or the child is to allow a {ThirdPerson} to perform the act on the child)) or ({Actor} intends to commit the referenced offence and (an offence under Section 184b(1) first sentence point 3 or an offence under Section 184b(3)))) or ((PersonAge < AgeLimit14) and ((({Actor} offers the child for the referenced act and an act under paragraph 1) or {Actor} promises to provide such a child or {Actor} conspires with another to commit such an act)).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ReferencedOffence]	Under184b1S1N3, Under184b3	false	Recomputes when any input changes; propagates into the composite.
[Child]	PersonAge, AgeLimit14	false	Recomputes when any input changes; propagates into the composite.
[Leg2]	CommitReferencedOffence, ReferencedOffence	false	Recomputes when any input changes; propagates into the composite.
[Para2]	Child, Offers, ActUnderPara1, Promises, Conspires	false	Recomputes when any input changes; propagates into the composite.
[IntendedActs]	OnActor, InFrontOfActor, OnThirdPerson, InFrontOfThirdPerson, AllowsActorPerform, AllowsThirdPersonPerform	false	Recomputes when any input changes; propagates into the composite.
[Leg1]	SexualActs, Induce, IntendedActs	false	Recomputes when any input changes; propagates into the composite.
[Intention]	Leg1, Leg2	false	Recomputes when any input changes; propagates into the composite.
[Para1]	ExertsInfluence, Child, Intention	false	Recomputes when any input changes; propagates into the composite.
[PreparationOfSexualAbuseOfChildren]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (PSA-P0)	[PreparationOfSexualAbuseOfChildren]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- {ActUnderPara1}
- {Actor}
- {AgeLimit14}
- {AllowsActorPerform}
- {AllowsThirdPersonPerform}
- {CommitReferencedOffence}
- {Conspires}
- {Content}
- {ExertsInfluence}
- {InFrontOfActor}
- {InFrontOfThirdPerson}
- {Induce}
- {Offers}
- {OnActor}
- {OnThirdPerson}
- {PersonAge}
- {Promises}
- {ThirdPerson}
- {Under184b1S1N3}
- {Under184b3}

↓

PHASE 2: evaluate act / intermediate computables

- [ReferencedOffence] = Under184b1S1N3 is true or Under184b3 is true
- [Child] = PersonAge < AgeLimit14
- [Leg2] = CommitReferencedOffence is true and ReferencedOffence is true
- [Para2] = Child is true and ((Offers is true and ActUnderPara1 is true) or Promises is true or Conspires is true)
- [IntendedActs] = OnActor is true or InFrontOfActor is true or OnThirdPerson is true or InFrontOfThirdPerson is true or AllowsActorPerform is true or AllowsThirdPersonPerform is true
- [Leg1] = SexualActs is true and Induce is true and IntendedActs is true
- [Intention] = Leg1 is true or Leg2 is true
- [Para1] = ExertsInfluence is true and Child is true and Intention is true
- [SexualActs] composed by name (the sexual-act term in §184h)

↓

PHASE 3: evaluate the objective conditions

- [PreparationOfSexualAbuseOfChildren] = Para1 is true or Para2 is true

↓

VERDICT (PrimeRule)

- [PreparationOfSexualAbuseOfChildren] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- [PreparationOfSexualAbuseOfChildren] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [PreparationOfSexualAbuseOfChildren] depends on [ReferencedOffence], [Child], [Leg2], [Para2], [IntendedActs], [Leg1], [Intention], [Para1] plus composed [SexualActs]; none refer back to [PreparationOfSexualAbuseOfChildren]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{ActUnderPara1}	Element/Datum: an act under paragraph 1.?	Boolean
Q2	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	{AgeLimit14}	Element/Datum: fourteen years.?	Number
Q4	Session	{AllowsActorPerform}	Element/Datum: the child is to allow {Actor} to perform the act on the child.?	Boolean
Q5	Session	{AllowsThirdPersonPerform}	Element/Datum: the child is to allow a {ThirdPerson} to perform the act on the child.?	Boolean
Q6	Session	{CommitReferencedOffence}	Element/Datum: {Actor} intends to commit the referenced offence.?	Boolean
Q7	Session	{Conspires}	Element/Datum: {Actor} conspires with another to commit such an act.?	Boolean
Q8	Session	{Content}	Element/Datum: content within the meaning of Section 11(3).?	Party
Q9	Session	{ExertsInfluence}	Element/Datum: {Actor} influences the child through the {Content}.?	Boolean
Q10	Session	{InFrontOfActor}	Element/Datum: the child is to perform the act in front of {Actor}.?	Boolean
Q11	Session	{InFrontOfThirdPerson}	Element/Datum: the child is to perform the act in front of a {ThirdPerson}.?	Boolean
Q12	Session	{Induce}	Element/Datum: {Actor} intends to induce the child to perform the act.?	Boolean
Q13	Session	{Offers}	Element/Datum: {Actor} offers the child for the referenced act.?	Boolean
Q14	Session	{OnActor}	Element/Datum: the child is to perform the act on {Actor}.?	Boolean
Q15	Session	{OnThirdPerson}	Element/Datum: the child is to perform the act on a {ThirdPerson}.?	Boolean
Q16	Session	{PersonAge}	Element/Datum: the age of {Person} in years.?	Number
Q17	Session	{Promises}	Element/Datum: {Actor} promises to provide such a child.?	Boolean
Q18	Session	{ThirdPerson}	Element/Datum: a third person.?	Party
Q19	Session	{Under184b1S1N3}	Element/Datum: an offence under Section 184b(1) first sentence point 3.?	Boolean
Q20	Session	{Under184b3}	Element/Datum: an offence under Section 184b(3).?	Boolean

FLAGS

- SCOPE** Paragraph 1, influencing a child through content with the intention of inducing sexual acts (leg 1) or committing a §184b offence (leg 2); paragraph 2, offering, promising or conspiring. Paragraph 3 (the mistaken-child attempt rule) struck entirely per the marked-up source.
- INTENT ELEMENT RETAINED PER THE MARKUP** The grooming offence is constituted by the intention legs; the marked-up source strikes only the penalty and leaves the “with the intention of” legs live. They are encoded deterministically on the description of the intended acts ([**IntendedActs**], [**ReferencedOffence**]); whether the intention existed in fact is a mental element and escalates to a human. This departs from the §174(3) precedent (special intent struck) only because the markup keeps these legs, without which §176b is empty.
- INTENDED-ACT MODALITIES** The six coordinated modalities of leg 1 ({**OnActor**}, {**InFrontOfActor**}, {**OnThirdPerson**}, {**InFrontOfThirdPerson**}, {**AllowsActorPerform**}, {**AllowsThirdPersonPerform**}) are object variables in their own blocks inside the {**Induce**} span, with the disjunction in [**IntendedActs**] (rules 1, 2, 10).
- REFERENCED OFFENCES AS OBJECTS** {**Under184b1S1N3**} and {**Under184b3**} are coordinated reference objects inside the {**CommitReferencedOffence**} span; the disjunction is [**ReferencedOffence**] (rule 10).
- CONTENT AS VARIABLE** {**Content**} carries content within the meaning of Section 11(3) (rule 3).
- CHILD DEFINITION** [Child] = {**PersonAge**} < {**AgeLimit14**}, restated locally; §176 is the authoring provision.
- TRANSLATION NOTE** The draft English layer renders the intention legs in the infinitive (“induce...”, “commit...”) without a finite construction and (1) lacks its penalty in the translation; the source column carries the text as published, the German governs.
- STRIKES** The penalty fragment in (1), “shall likewise be punished” in (2) (“Ebenso wird bestraft”) and the whole of (3) struck in the markup only.
- TREATMENT** §176b is Operomise-tagged. Encoded on the objective description of the prohibited preparation; the mental elements (intention in fact, mistaken assumption) escalate.

§176e · Dissemination and possession of instructions on the sexual abuse of children

InstructionsForSexualAbuseOfChildren · provenance StGB 176e · (1)-(5) encoded with live exemptions, (6) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
(1) Any person who disseminates or makes available to the public content (Section 11(3)) which is likely to serve as a guide to an unlawful act referred to in Sections 176 to 176d, and which is intended to encourage or arouse the willingness of others to commit such an act, shall be punished with imprisonment for up to three years or a fine. (2) The same penalty shall apply to anyone who 1. disseminates or makes available to the public content (Section 11(3)) that is capable of serving as instructions for an unlawful act referred to in Sections 176 to 176d, or 2. publicly or at a gathering provides instructions for an unlawful act referred to in Sections 176 to 176d, with the aim of encouraging or arousing others to commit such an act. (3) Any person who accesses, possesses, makes available to another person, or procures possession of content referred to in paragraph 1 for another person shall be liable to imprisonment for up to two years or a fine. (4) Paragraph 3 shall not apply to acts which serve exclusively the lawful fulfilment of the following: 1. state functions, 2. tasks arising from agreements with a competent public authority, or 3. official or professional duties. (5) Paragraphs 1 and 3 shall not apply to official acts carried out in the context of criminal investigations where 1. no child pornography content that depicts actual events or that has been produced using an image of a child or young person is made available to another person or to the public, distributed, or provided to another	«if InstructionsForSexualAbuseOfChildren is true»(1) {Actor} who «if {Disseminates} is true»disseminates «end if» «if {MakesAvailableToPublic} is true»or makes available to the public «end if» {Content} (Section 11(3)) «if {SuitableAsGuide} is true»which is likely to serve as a guide to «if {ReferencedAct} is true»an unlawful act referred to in Sections 176 to 176d «end if» «end if», and which is intended to «if {Encourages} is true»encourage «end if» «if {Arouses} is true»or arouse «end if» the {Willingness}, shall be punished with imprisonment for up to three years or a fine. (2) The same penalty shall apply to {Actor} who 1. «if {Disseminates} is true»disseminates «end if» «if {MakesAvailableToPublic} is true»or makes available to the public «end if» {Content} (Section 11(3)) «if {CapableAsInstructions} is true»that is capable of serving as instructions for «if {ReferencedAct} is true»an unlawful act referred to in Sections 176 to 176d «end if» «end if», or 2. «if {Publicly} is true»publicly «end if» «if {AtGathering} is true»or at a gathering «end if» «if {ProvidesInstructions} is true»provides instructions for «if {ReferencedAct} is true»an unlawful act referred to in Sections 176 to 176d «end if» «end if», with the aim of «if {Encourages} is true»encouraging «end if» «if {Arouses} is true»or arousing «end if» others to commit such an act. (3) {Actor} who «if {Accesses} is

person for possession, and 2. clarifying the facts of the case would otherwise be futile or significantly impeded. (6) Objects to which an offence under paragraph 3 relates shall be seized. Section 74a shall apply.

true»accesses «end if» «if {Possesses} is true», possesses «end if» «if {MakesAvailableToAnother} is true», makes available to another person «end if» «if {ProcuresPossessionForAnother} is true»or procures possession for another person of «end if» «if {ContentPara1} is true»content referred to in paragraph 1 «end if», shall be liable to imprisonment for up to two years or a fine. (4) Paragraph 3 shall not apply «if [Exemption4] is true»to acts «if {ServesExclusively} is true»which serve exclusively the lawful fulfilment of the following «end if»: 1. «if {StateFunctions} is true»state functions «end if», 2. «if {AgreementTasks} is true»tasks arising from agreements with a competent public authority «end if», or 3. «if {OfficialDuties} is true»official «end if» «if {ProfessionalDuties} is true»or professional duties «end if» «end if». (5) Paragraphs 1 and 3 shall not apply «if [Exemption5] is true»to «if {OfficialActInInvestigation} is true»official acts carried out in the context of criminal investigations «end if» where 1. no child pornography content «if {DepictsActualEvents} is true»that depicts actual events «end if» «if {ProducedUsingChildImage} is true»or that has been produced using an image of a child «end if» «if {ProducedUsingYouthImage} is true»or young person «end if» is «if {CSAMMadeAvailableToAnother} is true»made available to another person «end if» «if {CSAMMadeAvailableToPublic} is true»or to the public «end if» «if {CSAMDistributed} is true», distributed «end if» «if {CSAMPossessionProvided} is true», or provided to another person for possession «end if», and 2. clarifying the facts of the case would otherwise be «if {ClarificationOtherwiseFutile} is true»futile «end if» «if {ClarificationSignificantlyImpeded} is true»or significantly impeded «end if» «end if». (6) Objects to which an offence under paragraph 3 relates shall be seized. Section 74a shall apply.«end if»

ANNEXES

COMPUTABLES

[Venue] = Publicly is true or AtGathering is true

[Para2Leg2] = ProvidesInstructions is true and Venue is true and ReferencedAct is true

[Para3Conduct] = Accesses is true or Possesses is true or MakesAvailableToAnother is true or ProcuresPossessionForAnother is true

[Para3] = Para3Conduct is true and ContentPara1 is true

[Dissemination] = Disseminates is true or MakesAvailableToPublic is true

[Instructions] = CapableAsInstructions is true and ReferencedAct is true

[Para2Leg1] = Dissemination is true and Instructions is true

[Destination] = Encourages is true or Arouses is true

[Para2] = (Para2Leg1 is true or Para2Leg2 is true) and Destination is true

[Guide] = SuitableAsGuide is true and ReferencedAct is true

[Para1] = Dissemination is true and Guide is true and Destination is true

[ExemptDuty] = StateFunctions is true or AgreementTasks is true or OfficialDuties is true or ProfessionalDuties is true

[RealCSAM] = DepictsActualEvents is true or ProducedUsingChildImage is true or ProducedUsingYouthImage is true

[CSAMHandling] = CSAMMadeAvailableToAnother is true or CSAMMadeAvailableToPublic is true or CSAMDistributed is true or CSAMPossessionProvided is true

[RealCSAMHandled] = RealCSAM is true and CSAMHandling is true

[InvestigativeNecessity] = ClarificationOtherwiseFutile is true or ClarificationSignificantlyImpeded is true

[Exemption5] = OfficialActInInvestigation is true and RealCSAMHandled is false and InvestigativeNecessity is true

[Exemption4] = ServesExclusively is true and ExemptDuty is true

[InstructionsForSexualAbuseOfChildren] = (Para1 is true and Exemption5 is false) or Para2 is true or (Para3 is true and Exemption4 is false and Exemption5 is false)

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
ISA-R01	ACT	Actor		Disseminates is true
ISA-R02	ACT	Actor		MakesAvailableToPublic is true
ISA-R03	CONDITION	None		SuitableAsGuide is true

ISA-R04	CONDITION	None		ReferencedAct is true
ISA-R05	CONDITION	None		Encourages is true
ISA-R06	CONDITION	None		Arouses is true
ISA-R07	CONDITION	None		CapableAsInstructions is true
ISA-R08	ACT	Actor		ProvidesInstructions is true
ISA-R09	CONDITION	None		Publicly is true
ISA-R10	CONDITION	None		AtGathering is true
ISA-R11	ACT	Actor		Accesses is true
ISA-R12	ACT	Actor		Possesses is true
ISA-R13	ACT	Actor		MakesAvailableToAnother is true
ISA-R14	ACT	Actor		ProcuresPossessionForAnother is true
ISA-R15	CONDITION	None		ContentPara1 is true
ISA-R16	CONDITION	None		ServesExclusively is true
ISA-R17	CONDITION	None		StateFunctions is true
ISA-R18	CONDITION	None		AgreementTasks is true
ISA-R19	CONDITION	None		OfficialDuties is true
ISA-R20	CONDITION	None		ProfessionalDuties is true
ISA-R21	CONDITION	None		OfficialActInInvestigation is true
ISA-R22	CONDITION	None		DepictsActualEvents is true
ISA-R23	CONDITION	None		ProducedUsingChildImage is true
ISA-R24	CONDITION	None		ProducedUsingYouthImage is true
ISA-R25	CONDITION	None		CSAMMadeAvailableToAnother is true
ISA-R26	CONDITION	None		CSAMMadeAvailableToPublic is true
ISA-R27	CONDITION	None		CSAMDistributed is true
ISA-R28	CONDITION	None		CSAMPossessionProvided is true
ISA-R29	CONDITION	None		ClarificationOtherwiseFutile is true
ISA-R30	CONDITION	None		ClarificationSignificantlyImpeded is true
ISA-R90	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
ISA-P0	PROHIBITION	Actor	not realise	not InstructionsForSexualAbuseOfChildren

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Any person who	Tätersubjekt	{Actor}	–	in scope
{Actor} disseminates the {Content}	Merkmal	{Disseminates}	ISA-R01	is true
{Actor} makes the {Content} available to the public	Merkmal	{MakesAvailableToPublic}	ISA-R02	is true
the {Content} is likely to serve as a guide to the referenced act	Merkmal	{SuitableAsGuide}	ISA-R03	is true
an unlawful act referred to in Sections 176 to 176d	Merkmal	{ReferencedAct}	ISA-R04	is true
the {Content} is intended to encourage the {Willingness}	Merkmal	{Encourages}	ISA-R05	is true
the {Content} is intended to arouse the {Willingness}	Merkmal	{Arouses}	ISA-R06	is true
the {Content} is capable of serving as instructions for the referenced act	Merkmal	{CapableAsInstructions}	ISA-R07	is true
{Actor} provides instructions for the referenced act	Merkmal	{ProvidesInstructions}	ISA-R08	is true
publicly	Merkmal	{Publicly}	ISA-R09	is true
at a gathering	Merkmal	{AtGathering}	ISA-R10	is true
{Actor} accesses the {Content}	Merkmal	{Accesses}	ISA-R11	is true
{Actor} possesses the {Content}	Merkmal	{Possesses}	ISA-R12	is true
{Actor} makes the {Content} available to another person	Merkmal	{MakesAvailableToAnother}	ISA-R13	is true
{Actor} procures possession of the {Content} for another person	Merkmal	{ProcuresPossessionForAnother}	ISA-R14	is true
the content is content referred to in paragraph 1	Merkmal	{ContentPara1}	ISA-R15	is true
the act serves exclusively the lawful fulfilment of the referenced duties	Merkmal	{ServesExclusively}	ISA-R16	is true
state functions	Merkmal	{StateFunctions}	ISA-R17	is true
tasks arising from agreements with a competent public authority	Merkmal	{AgreementTasks}	ISA-R18	is true
official duties	Merkmal	{OfficialDuties}	ISA-R19	is true
professional duties	Merkmal	{ProfessionalDuties}	ISA-R20	is true
the act is an official act carried out in the context of criminal investigations	Merkmal	{OfficialActInInvestigation}	ISA-R21	is true
the child pornography content depicts actual events	Merkmal	{DepictsActualEvents}	ISA-R22	is true
the child pornography content has been produced using an image of a child	Merkmal	{ProducedUsingChildImage}	ISA-R23	is true
the child pornography content has been produced using an image of a young person	Merkmal	{ProducedUsingYouthImage}	ISA-R24	is true
such content is made available to another person	Merkmal	{CSAMMadeAvailableToAnother}	ISA-R25	is true
such content is made available to the public	Merkmal	{CSAMMadeAvailableToPublic}	ISA-R26	is true

such content is distributed	Merkmal	{CSAMDistributed}	ISA-R27	is true
such content is provided to another person for possession	Merkmal	{CSAMPossessionProvided}	ISA-R28	is true
clarifying the facts of the case would otherwise be futile	Merkmal	{ClarificationOtherwiseFutile}	ISA-R29	is true
clarifying the facts of the case would otherwise be significantly impeded	Merkmal	{ClarificationSignificantlyImpeded}	ISA-R30	is true
(6) seizure	consequence	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Accesses}	Boolean	true / false / unknown	Session	{Actor} accesses the {Content}
{Actor}	Reference	–	Session	any person (the actor)
{AgreementTasks}	Boolean	true / false / unknown	Session	tasks arising from agreements with a competent public authority
{Arouses}	Boolean	true / false / unknown	Session	the {Content} is intended to arouse the {Willingness}
{AtGathering}	Boolean	true / false / unknown	Session	at a gathering
{CSAMDistributed}	Boolean	true / false / unknown	Session	such content is distributed
{CSAMMadeAvailableToAnother}	Boolean	true / false / unknown	Session	such content is made available to another person
{CSAMMadeAvailableToPublic}	Boolean	true / false / unknown	Session	such content is made available to the public
{CSAMPossessionProvided}	Boolean	true / false / unknown	Session	such content is provided to another person for possession
{CapableAsInstructions}	Boolean	true / false / unknown	Session	the {Content} is capable of serving as instructions for the referenced act
{ClarificationOtherwiseFutile}	Boolean	true / false / unknown	Session	clarifying the facts of the case would otherwise be futile
{ClarificationSignificantlyImpeded}	Boolean	true / false / unknown	Session	clarifying the facts of the case would otherwise be significantly impeded
{Content}	Party	–	Session	content within the meaning of Section 11(3)
{ContentParal}	Boolean	true / false / unknown	Session	the content is content referred to in paragraph 1
{DepictsActualEvents}	Boolean	true / false / unknown	Session	the child pornography content depicts actual events
{Disseminates}	Boolean	true / false / unknown	Session	{Actor} disseminates the {Content}
{Encourages}	Boolean	true / false / unknown	Session	the {Content} is intended to encourage the {Willingness}
{MakesAvailableToAnother}	Boolean	true / false / unknown	Session	{Actor} makes the {Content} available to another person
{MakesAvailableToPublic}	Boolean	true / false / unknown	Session	{Actor} makes the {Content} available to the public
{OfficialActInInvestigation}	Boolean	true / false / unknown	Session	the act is an official act carried out in the context of criminal investigations
{OfficialDuties}	Boolean	true / false / unknown	Session	official duties
{Possesses}	Boolean	true / false / unknown	Session	{Actor} possesses the {Content}
{ProcuresPossessionForAnother}	Boolean	true / false / unknown	Session	{Actor} procures possession of the {Content} for another person
{ProducedUsingChildImage}	Boolean	true / false / unknown	Session	the child pornography content has been produced using an image of a child
{ProducedUsingYouthImage}	Boolean	true / false / unknown	Session	the child pornography content has been produced using an image of a young person
{ProfessionalDuties}	Boolean	true / false / unknown	Session	professional duties
{ProvidesInstructions}	Boolean	true / false / unknown	Session	{Actor} provides instructions for the referenced act
{Publicly}	Boolean	true / false / unknown	Session	publicly
{ReferencedAct}	Boolean	true / false / unknown	Session	an unlawful act referred to in Sections 176 to 176d
{ServesExclusively}	Boolean	true / false / unknown	Session	the act serves exclusively the lawful fulfilment of the referenced duties
{StateFunctions}	Boolean	true / false / unknown	Session	state functions
{SuitableAsGuide}	Boolean	true / false / unknown	Session	the {Content} is likely to serve as a guide to the referenced act
{Willingness}	Party	–	Session	the willingness of others to commit such an act

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: ((({Actor} disseminates the {Content} or {Actor} makes the {Content} available to the public) and (the {Content} is likely to serve as a guide to the referenced act and an unlawful act referred to in Sections 176 to 176d) and (the {Content} is intended to encourage the {Willingness} or the {Content} is intended to arouse the {Willingness}))) and it is not the case that (the act is an official act carried out in the context of criminal investigations and it is not the case that ((the child pornography content depicts actual events or the child pornography content has been produced using an image of a child or the child pornography content has been produced using an image of a young person) and (such content is made available to another person or such content is made available to the public or such content is distributed or such content is provided to another person for possession)) and (clarifying the facts of the case would otherwise be futile or clarifying the facts of the case would otherwise be significantly impeded)))) or ((({Actor} disseminates the {Content} or {Actor} makes the {Content} available to the public) and (the {Content} is capable of serving as instructions for the referenced act and an unlawful act referred to in Sections 176 to 176d)) or ({Actor} provides instructions for the referenced act and (publicly or at a gathering) and an unlawful act referred to in Sections 176 to 176d)) and (the {Content} is intended to encourage the {Willingness} or the {Content} is intended to arouse the {Willingness}))) or ((({Actor} accesses the {Content} or {Actor} possesses the {Content} or {Actor} makes the {Content} available to another person or {Actor} procures possession of the {Content} for another person) and the content is content referred to in paragraph 1) and it is not the case that (the act serves exclusively the lawful fulfilment of the referenced duties and (state functions or tasks arising from agreements with a competent public authority or official duties or professional duties)) and it is not the case that (the act is an official act carried out in the context of criminal investigations and it is not the case that ((the child pornography content depicts actual events or the child pornography content has been produced using an image of a child or the child pornography content has been produced using an image of a young person) and (such content is made available to another person or such content is made available to the public or such content is distributed or such content is provided to another person for possession)) and (clarifying the facts of the case would otherwise be futile or clarifying the facts of the case would otherwise be significantly impeded)))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Venue]	Publicly, AtGathering	false	Recomputes when any input changes; propagates into the composite.

[Para2Leg2]	ProvidesInstructions, Venue, ReferencedAct	false	Recomputes when any input changes; propagates into the composite.
[Para3Conduct]	Accesses, Possesses, MakesAvailableToAnother, ProcuresPossessionForAnother	false	Recomputes when any input changes; propagates into the composite.
[Para3]	Para3Conduct, ContentPara1	false	Recomputes when any input changes; propagates into the composite.
[Dissemination]	Disseminates, MakesAvailableToPublic	false	Recomputes when any input changes; propagates into the composite.
[Instructions]	CapableAsInstructions, ReferencedAct	false	Recomputes when any input changes; propagates into the composite.
[Para2Leg1]	Dissemination, Instructions	false	Recomputes when any input changes; propagates into the composite.
[Destination]	Encourages, Arouses	false	Recomputes when any input changes; propagates into the composite.
[Para2]	Para2Leg1, Para2Leg2, Destination	false	Recomputes when any input changes; propagates into the composite.
[Guide]	SuitableAsGuide, ReferencedAct	false	Recomputes when any input changes; propagates into the composite.
[Para1]	Dissemination, Guide, Destination	false	Recomputes when any input changes; propagates into the composite.
[ExemptDuty]	StateFunctions, AgreementTasks, OfficialDuties, ProfessionalDuties	false	Recomputes when any input changes; propagates into the composite.
[RealCSAM]	DepictsActualEvents, ProducedUsingChildImage, ProducedUsingYouthImage	false	Recomputes when any input changes; propagates into the composite.
[CSAMHandling]	CSAMMadeAvailableToAnother, CSAMMadeAvailableToPublic, CSAMDistributed, CSAMPossessionProvided	false	Recomputes when any input changes; propagates into the composite.
[RealCSAMHandled]	RealCSAM, CSAMHandling	false	Recomputes when any input changes; propagates into the composite.
[InvestigativeNecessity]	ClarificationOtherwiseFutile, ClarificationSignificantlyImpeded	false	Recomputes when any input changes; propagates into the composite.
[Exemption5]	OfficialActInInvestigation, RealCSAMHandled, InvestigativeNecessity	false	Recomputes when any input changes; propagates into the composite.
[Exemption4]	ServesExclusively, ExemptDuty	false	Recomputes when any input changes; propagates into the composite.
[InstructionsForSexualAbuseOfChildren]	Para1, Exemption5, Para2, Para3, Exemption4, Exemption5	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (ISA-P0)	[InstructionsForSexualAbuseOfChildren]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

└ {Accesses}

└ {Actor}

└ {AgreementTasks}

└ {Arouses}

└ {AtGathering}

└ {CSAMDistributed}

└ {CSAMMadeAvailableToAnother}

└ {CSAMMadeAvailableToPublic}

└ {CSAMPossessionProvided}

└ {CapableAsInstructions}

└ {ClarificationOtherwiseFutile}

└ {ClarificationSignificantlyImpeded}

└ {Content}

└ {ContentPara1}

└ {DepictsActualEvents}

└ {Disseminates}

└ {Encourages}

└ {MakesAvailableToAnother}

└ {MakesAvailableToPublic}

└ {OfficialActInInvestigation}

└ {OfficialDuties}

└ {Possesses}

└ {ProcuresPossessionForAnother}

└ {ProducedUsingChildImage}

└ {ProducedUsingYouthImage}

└ {ProfessionalDuties}

└ {ProvidesInstructions}

└ {Publicly}

└ {ReferencedAct}

└ {ServesExclusively}

└ {StateFunctions}

└ {SuitableAsGuide}

└ {Willingness}

↓

PHASE 2: evaluate act / intermediate computables

└ [Venue] = Publicly is true or AtGathering is true

└ [Para2Leg2] = ProvidesInstructions is true and Venue is true and ReferencedAct is true

└ [Para3Conduct] = Accesses is true or Possesses is true or MakesAvailableToAnother is true or ProcuresPossessionForAnother is true

└ [Para3] = Para3Conduct is true and ContentPara1 is true

└ [Dissemination] = Disseminates is true or MakesAvailableToPublic is true

SCOPE

Paragraphs 1 to 3, the three offence variants (guide content disseminated; instruction content disseminated or instructions given publicly or at a gathering; accessing, possessing, passing on or procuring such content); paragraphs 4 and 5, the two statutory exemptions, encoded live. Paragraph 6 (seizure) struck as a pure consequence.

EXEMPTIONS AS SEPARATE RULES, SCOPED PER LEG (RULE 8)

[Exemption4]

(exclusively lawful fulfilment of state functions, agreement tasks, or official or professional duties) negates paragraph 3 only; [Exemption5] (investigative official acts, no real-image child pornography handled, clarification otherwise futile or significantly impeded) negates paragraphs 1 and 3. The top composite applies each as “and not” on exactly the legs the statute names: (Para1 and not Exemption5) or Para2 or (Para3 and not Exemption4 and not Exemption5). No exemption lives inside an offence leg.

EXEMPTION 5 DECOMPOSITION

Condition 1 is the conjunction of two coordinated families: the real-image properties ([RealCSAM]: {DepictsActualEvents}, {ProducedUsingChildImage}, {ProducedUsingYouthImage}) and the handling modalities ([CSAMHandling]: made available to another, made available to the public, distributed, possession provided). The statutory negative (“no such content is handled”) is [RealCSAMHandled] is false inside [Exemption5]. Condition 2 is [InvestigativeNecessity]: {ClarificationOtherwiseFutile} or {ClarificationSignificantlyImpeded}.

DISSEMINATION MODALITIES REUSED

{Disseminates}

and {MakesAvailableToPublic}

carry the same Merkmal in (1) and (2); [Dissemination] is consumed by both. {Encourages} and {Arouses} likewise carry the destination element in (1) and the closing aim of (2); [Destination] is consumed by both (one variable per Merkmal).

STATUTORY RANGE AS PROSE

“Sections 176 to 176d” is a range, not a coordination of facts; it stays inside the {ReferencedAct} object surface.

SOURCE NOTE

The markup splits the closing words of (2) (“with the aim of encouraging or arousing others to commit such an act.”) into a separate row; the source column reattaches them to (2), where the German places them.

STRIKES

The penalties in (1) and (3), “The same penalty shall apply” in (2) and the whole of (6) struck in the markup only; the source column is clean.

TREATMENT

§176e is Operomise-tagged: the offence turns on content properties, conduct modalities and the two exemptions, all encodable; the content-purpose elements (“intended to”, “with the aim of”) are encoded as properties of the content and the act as written, with the underlying mental finding escalating to a human.

§177 · Sexual assault; sexual coercion; rape

SexualAssault · provenance StGB 177 · (1)-(2) encoded, (3)-(9) struck

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Any person who, against the recognisable will of another person, performs sexual acts on that person or causes them to be performed, or directs that person to perform or tolerate sexual acts on or by a third party, shall be punished with imprisonment for a term of six months to five years. (2) A person shall likewise be punished who performs sexual acts on another person or causes such acts to be performed on that person, or who directs that person to perform or tolerate sexual acts on or by a third party, if 1. the offender takes advantage of the fact that the person is unable to form or express a contrary will, 2. the offender takes advantage of the fact that the person is significantly restricted in forming or expressing their will due to their physical or mental condition, unless the offender has obtained the consent of that person, 3. the perpetrator takes advantage of a moment of surprise, 4. the perpetrator takes advantage of a situation in which the victim faces a serious risk of harm if they resist, or 5. the perpetrator has coerced the person into performing or tolerating the sexual act by threatening them with serious harm. (3) An attempt is punishable. (4) A term of imprisonment of not less than one year shall be imposed if the inability to form or express a will is due to an illness or disability of the victim. (5) A term of imprisonment of not less than one year shall be imposed if the offender 1. uses violence against the victim, 2. threatens the victim with imminent danger to life or limb, or 3. takes advantage of a situation in which the victim is defenceless against the perpetrator’s actions. (6) In particularly serious cases, a custodial sentence of not less than two years shall be imposed. A particularly serious case generally exists where 1. the offender has sexual intercourse with the victim or causes sexual intercourse to be performed on the victim, or performs or causes similar sexual acts to be performed on the victim which are particularly degrading, in particular if they involve penetration of the body (rape), or 2. the offence is committed jointly by several persons. (7) A term of imprisonment of not less than three years shall be imposed if the offender 1. carries a weapon or other dangerous instrument, 2. carries any other instrument or means intended to prevent or overcome the resistance of another person by force or the threat of force, or 3. exposes the victim to the risk of serious harm to their health. (8) A term of imprisonment of not less than five years shall be imposed if the offender 1. uses a weapon or other dangerous instrument in the commission of the offence, or 2. the victim a) was subjected to serious physical abuse during the offence, or b) put the victim in danger of death as a result of the offence. (9) In less serious cases under paragraphs 1 and 2, the penalty shall be imprisonment for a term of three months to three years; in less serious cases under paragraphs 4 and 5, the penalty shall be imprisonment for a term of six months to ten years; in less serious cases under paragraphs 7 and 8, the penalty shall be imprisonment for a term of one year to ten years.	«if SexualAssault is true»(1) {Actor} who, «if {AgainstRecognisableWill} is true»against the recognisable will of {Person} «end if», «if {Performs} is true»performs [SexualActs] on {Person} «end if» «if {HasVictimPerformOnActor} is true»or causes them to be performed «end if», or «if {Directs} is true»directs {Person} to «if {VictimPerformsOnThirdPerson} is true»perform «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate «end if» [SexualActs] on or by a {ThirdPerson} «end if», shall be punished with imprisonment for a term of six months to five years. (2) {Actor} shall likewise be punished who «if {Performs} is true»performs [SexualActs] on {Person} «end if» «if {HasVictimPerformOnActor} is true»or causes such acts to be performed on that person «end if», or who «if {Directs} is true»directs {Person} to «if {VictimPerformsOnThirdPerson} is true»perform «end if» «if {VictimToleratesByThirdPerson} is true»or tolerate «end if» [SexualActs] on or by a {ThirdPerson} «end if», if 1. «if {Exploits} is true»takes advantage of the fact that {Person} is unable «if {UnableToFormContraryWill} is true»to form «end if» «if {UnableToExpressContraryWill} is true»or express «end if» a contrary will «end if», 2. «if {Exploits} is true»takes advantage of the fact that {Person} is {Significantly} significantly restricted in «if {RestrictedInForming} is true»forming «end if» «if {RestrictedInExpressing} is true»or expressing «end if» their will due to their «if {PhysicalCondition} is true»physical «end if» «if {MentalCondition} is true»or mental «end if» condition «end if», «if {Circ2} is true»unless «if {ConsentObtained} is true»{Actor} has obtained the consent of {Person} «end if» «end if», 3. «if {Exploits} is true»takes advantage of «if {MomentOfSurprise} is true»a moment of surprise «end if» «end if», 4. «if {Exploits} is true»takes advantage of «if {SituationOfRisk} is true»a situation in which {Person} faces a {Serious} serious risk of harm if they resist «end if» «end if», or 5. «if {Coerced} is true»has coerced {Person} «if {IntoPerforming} is true»into performing «end if» «if {IntoTolerating} is true»or tolerating «end if» the sexual act «end if» «if {ThreatensWithHarm} is true»by threatening them with {Serious} serious harm «end if». {3} An attempt is punishable. {4} A term of imprisonment of not less than one year shall be imposed if the inability to form or express a will is due to an illness or disability of the victim. {5} A term of imprisonment of not less than one year shall be imposed if the offender 1. uses violence against the victim, 2. threatens the victim with imminent danger to life or limb, or 3. takes advantage of a situation in which the victim is defenceless against the perpetrator’s actions. {6} In particularly serious cases, a custodial sentence of not less than two years shall be imposed. A particularly serious case generally exists where 1. the offender has sexual intercourse with the victim or causes sexual intercourse to be performed on the victim, or performs or causes similar sexual acts to be performed on the victim which are particularly degrading, in particular if they involve penetration of the body (rape), or 2. the offence is committed jointly by several persons. {7} A term of imprisonment of not less than three years shall be imposed if the offender 1. carries a weapon or other dangerous instrument, 2. carries any other instrument or means intended to prevent or overcome the resistance of another person by force or the threat of force, or 3. exposes the victim to the risk of serious harm to their health. {8}

A term of imprisonment of not less than five years shall be imposed if the offender 1. uses a weapon or other dangerous instrument in the commission of the offence, or 2. the victim a) was subjected to serious physical abuse during the offence, or b) put the victim in danger of death as a result of the offence. (9) In less serious cases under paragraphs 1 and 2, the penalty shall be imprisonment for a term of three months to three years; in less serious cases under paragraphs 4 and 5, the penalty shall be imprisonment for a term of six months to ten years; in less serious cases under paragraphs 7 and 8, the penalty shall be imprisonment for a term of one year to ten years.◀end if▶

ANNEXES

COMPUTABLES

[Circ1] = Exploits is true and (UnableToFormContraryWill is true or UnableToExpressContraryWill is true)

[Circ4] = Exploits is true and SituationOfRisk is true and Serious is true

[ConditionCause] = PhysicalCondition is true or MentalCondition is true

[Circ2] = Exploits is true and Significantly is true and (RestrictedInForming is true or RestrictedInExpressing is true) and ConditionCause is true and ConsentObtained is false

[ThirdPartyConduct] = Directs is true and (VictimPerformsOnThirdPerson is true or VictimToleratesByThirdPerson is true)

[Conduct] = Performs is true or HasVictimPerformOnActor is true or ThirdPartyConduct is true

[Para1] = SexualActs is true and AgainstRecognisableWill is true and Conduct is true

[Circ3] = Exploits is true and MomentOfSurprise is true

[Circ5] = Coerced is true and (IntoPerforming is true or IntoTolerating is true) and ThreatensWithHarm is true and Serious is true

[Para2Circumstances] = Circ1 is true or Circ2 is true or Circ3 is true or Circ4 is true or Circ5 is true

[Para2] = SexualActs is true and Conduct is true and Para2Circumstances is true

[SexualAssault] = Para1 is true or Para2 is true

[SexualActs] – referenced by canonical name; defined in the sexual-act term in §184h. Not expanded here (cross-operome composition by name).

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SXA-R01	CONDITION	None		AgainstRecognisableWill is true
SXA-R02	ACT	Actor		Performs is true
SXA-R03	ACT	Actor		HasVictimPerformOnActor is true
SXA-R04	ACT	Actor		Directs is true
SXA-R05	CONDITION	None		VictimPerformsOnThirdPerson is true
SXA-R06	CONDITION	None		VictimToleratesByThirdPerson is true
SXA-R07	ACT	Actor		Exploits is true
SXA-R08	CONDITION	None		UnableToFormContraryWill is true
SXA-R09	CONDITION	None		UnableToExpressContraryWill is true
SXA-R10	CONDITION	None		Significantly is true
SXA-R11	CONDITION	None		RestrictedInForming is true
SXA-R12	CONDITION	None		RestrictedInExpressing is true
SXA-R13	CONDITION	None		PhysicalCondition is true
SXA-R14	CONDITION	None		MentalCondition is true
SXA-R15	CONDITION	None		ConsentObtained is true
SXA-R16	CONDITION	None		MomentOfSurprise is true
SXA-R17	CONDITION	None		SituationOfRisk is true
SXA-R18	CONDITION	None		Serious is true
SXA-R19	ACT	Actor		Coerced is true
SXA-R20	CONDITION	None		IntoPerforming is true
SXA-R21	CONDITION	None		IntoTolerating is true
SXA-R22	ACT	Actor		ThreatensWithHarm is true
SXA-R90	CONDITION	None	the act is a sexual act within section 184h	SexualActs is true
SXA-P0	PROHIBITION	Actor	not realise	not SexualAssault

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
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Any person who	Tätersubjekt	{Actor}	–	in scope
the act is against the recognisable will of {Person}	Merkmal	{AgainstRecognisableWill}	SXA-R01	is true
{Actor} performs the act on {Person}	Merkmal	{Performs}	SXA-R02	is true
{Actor} has {Person} perform the act on {Actor}	Merkmal	{HasVictimPerformOnActor}	SXA-R03	is true
{Actor} directs {Person}	Merkmal	{Directs}	SXA-R04	is true
{Person} performs the act on a {ThirdPerson}	Merkmal	{VictimPerformsOnThirdPerson}	SXA-R05	is true
{Person} tolerates the act by a {ThirdPerson}	Merkmal	{VictimToleratesByThirdPerson}	SXA-R06	is true
{Actor} takes advantage of the circumstance	Merkmal	{Exploits}	SXA-R07	is true
{Person} is unable to form a contrary will	Merkmal	{UnableToFormContraryWill}	SXA-R08	is true
{Person} is unable to express a contrary will	Merkmal	{UnableToExpressContraryWill}	SXA-R09	is true
significantly	Merkmal	{Significantly}	SXA-R10	is true
{Person} is restricted in forming their will	Merkmal	{RestrictedInForming}	SXA-R11	is true
{Person} is restricted in expressing their will	Merkmal	{RestrictedInExpressing}	SXA-R12	is true
{Person}'s physical condition	Merkmal	{PhysicalCondition}	SXA-R13	is true
{Person}'s mental condition	Merkmal	{MentalCondition}	SXA-R14	is true
{Actor} has obtained the consent of {Person}	Merkmal	{ConsentObtained}	SXA-R15	is true
a moment of surprise obtains	Merkmal	{MomentOfSurprise}	SXA-R16	is true
a situation obtains in which {Person} faces a risk of harm upon resistance	Merkmal	{SituationOfRisk}	SXA-R17	is true
serious	Merkmal	{Serious}	SXA-R18	is true
{Actor} has coerced {Person}	Merkmal	{Coerced}	SXA-R19	is true
into performing the act	Merkmal	{IntoPerforming}	SXA-R20	is true
into tolerating the act	Merkmal	{IntoTolerating}	SXA-R21	is true
{Actor} threatens {Person} with harm	Merkmal	{ThreatensWithHarm}	SXA-R22	is true
(3)-(9) attempt, aggravations and sentencing	grading / consequences	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{AgainstRecognisableWill}	Boolean	true / false / unknown	Session	the act is against the recognisable will of {Person}
{Coerced}	Boolean	true / false / unknown	Session	{Actor} has coerced {Person}
{ConsentObtained}	Boolean	true / false / unknown	Session	{Actor} has obtained the consent of {Person}
{Directs}	Boolean	true / false / unknown	Session	{Actor} directs {Person}
{Exploits}	Boolean	true / false / unknown	Session	{Actor} takes advantage of the circumstance
{HasVictimPerformOnActor}	Boolean	true / false / unknown	Session	{Actor} has {Person} perform the act on {Actor}
{IntoPerforming}	Boolean	true / false / unknown	Session	into performing the act
{IntoTolerating}	Boolean	true / false / unknown	Session	into tolerating the act
{MentalCondition}	Boolean	true / false / unknown	Session	{Person}'s mental condition
{MomentOfSurprise}	Boolean	true / false / unknown	Session	a moment of surprise obtains
{Performs}	Boolean	true / false / unknown	Session	{Actor} performs the act on {Person}
{Person}	Party	–	Session	the other person (the victim)
{PhysicalCondition}	Boolean	true / false / unknown	Session	{Person}'s physical condition
{RestrictedInExpressing}	Boolean	true / false / unknown	Session	{Person} is restricted in expressing their will
{RestrictedInForming}	Boolean	true / false / unknown	Session	{Person} is restricted in forming their will
{Serious}	Boolean	true / false / unknown	Session	serious
{Significantly}	Boolean	true / false / unknown	Session	significantly
{SituationOfRisk}	Boolean	true / false / unknown	Session	a situation obtains in which {Person} faces a risk of harm upon resistance
{ThirdPerson}	Party	–	Session	a third party
{ThreatensWithHarm}	Boolean	true / false / unknown	Session	{Actor} threatens {Person} with harm
{UnableToExpressContraryWill}	Boolean	true / false / unknown	Session	{Person} is unable to express a contrary will
{UnableToFormContraryWill}	Boolean	true / false / unknown	Session	{Person} is unable to form a contrary will
{VictimPerformsOnThirdPerson}	Boolean	true / false / unknown	Session	{Person} performs the act on a {ThirdPerson}
{VictimToleratesByThirdPerson}	Boolean	true / false / unknown	Session	{Person} tolerates the act by a {ThirdPerson}

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (the act is a sexual act within the meaning of §184h and the act is against the recognisable will of {Person} and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor} or ({Actor} directs {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson})))) or (the act is a sexual act within the meaning of §184h and ({Actor} performs the act on {Person} or {Actor} has {Person} perform the act on {Actor} or ({Actor} directs {Person} and ({Person} performs the act on a {ThirdPerson} or {Person} tolerates the act by a {ThirdPerson})))) and ((({Actor} takes advantage of the circumstance and ({Person} is unable to form a contrary will or {Person} is unable to express a contrary will)) or ({Actor} takes advantage of the circumstance and significantly and ({Person} is restricted in forming their will or {Person} is restricted in expressing their will) and ({Person}'s physical condition or {Person}'s mental condition) and not {Actor} has obtained the consent of {Person})) or ({Actor} takes advantage of the circumstance and a moment of surprise obtains) or ({Actor} takes advantage of the circumstance and

a situation obtains in which {Person} faces a risk of harm upon resistance and serious) or ({Actor} has coerced {Person} and (into performing the act or into tolerating the act) and {Actor} threatens {Person} with harm and serious))).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Circ1]	Exploits, UnableToFormContraryWill, UnableToExpressContraryWill	false	Recomputes when any input changes; propagates into the composite.
[Circ4]	Exploits, SituationOfRisk, Serious	false	Recomputes when any input changes; propagates into the composite.
[ConditionCause]	PhysicalCondition, MentalCondition	false	Recomputes when any input changes; propagates into the composite.
[Circ2]	Exploits, Significantly, RestrictedInForming, RestrictedInExpressing, ConditionCause, ConsentObtained	false	Recomputes when any input changes; propagates into the composite.
[ThirdPartyConduct]	Directs, VictimPerformsOnThirdPerson, VictimToleratesByThirdPerson	false	Recomputes when any input changes; propagates into the composite.
[Conduct]	Performs, HasVictimPerformOnActor, ThirdPartyConduct	false	Recomputes when any input changes; propagates into the composite.
[Para1]	SexualActs, AgainstRecognisableWill, Conduct	false	Recomputes when any input changes; propagates into the composite.
[Circ3]	Exploits, MomentOfSurprise	false	Recomputes when any input changes; propagates into the composite.
[Circ5]	Coerced, IntoPerforming, IntoTolerating, ThreatensWithHarm, Serious	false	Recomputes when any input changes; propagates into the composite.
[Para2Circumstances]	Circ1, Circ2, Circ3, Circ4, Circ5	false	Recomputes when any input changes; propagates into the composite.
[Para2]	SexualActs, Conduct, Para2Circumstances	false	Recomputes when any input changes; propagates into the composite.
[SexualAssault]	Para1, Para2	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SXA-P0)	[SexualAssault]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

```
PHASE 1: gather inputs (Session)
├ {Actor}
├ {AgainstRecognisableWill}
├ {Coerced}
├ {ConsentObtained}
├ {Directs}
├ {Exploits}
├ {HasVictimPerformOnActor}
├ {IntoPerforming}
├ {IntoTolerating}
├ {MentalCondition}
├ {MomentOfSurprise}
├ {Performs}
├ {Person}
├ {PhysicalCondition}
├ {RestrictedInExpressing}
├ {RestrictedInForming}
├ {Serious}
├ {Significantly}
├ {SituationOfRisk}
├ {ThirdPerson}
├ {ThreatensWithHarm}
├ {UnableToExpressContraryWill}
├ {UnableToFormContraryWill}
├ {VictimPerformsOnThirdPerson}
├ {VictimToleratesByThirdPerson}
↓
PHASE 2: evaluate act / intermediate computables
├ [Circ1] = Exploits is true and (UnableToFormContraryWill is true or UnableToExpressContraryWill is true)
├ [Circ4] = Exploits is true and SituationOfRisk is true and Serious is true
├ [ConditionCause] = PhysicalCondition is true or MentalCondition is true
├ [Circ2] = Exploits is true and Significantly is true and (RestrictedInForming is true or RestrictedInExpressing is true) and ConditionCause is true
and ConsentObtained is false
├ [ThirdPartyConduct] = Directs is true and (VictimPerformsOnThirdPerson is true or VictimToleratesByThirdPerson is true)
├ [Conduct] = Performs is true or HasVictimPerformOnActor is true or ThirdPartyConduct is true
├ [Para1] = SexualActs is true and AgainstRecognisableWill is true and Conduct is true
├ [Circ3] = Exploits is true and MomentOfSurprise is true
├ [Circ5] = Coerced is true and (IntoPerforming is true or IntoTolerating is true) and ThreatensWithHarm is true and Serious is true
├ [Para2Circumstances] = Circ1 is true or Circ2 is true or Circ3 is true or Circ4 is true or Circ5 is true
├ [Para2] = SexualActs is true and Conduct is true and Para2Circumstances is true
├ [SexualActs] composed by name (the sexual-act term in §184h)
↓
PHASE 3: evaluate the objective conditions
├ [SexualAssault] = Para1 is true or Para2 is true
↓
VERDICT (PrimeRule)
```

└─ [SexualAssault] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└─ [SexualAssault] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [SexualAssault] depends on [Circ1], [Circ4], [ConditionCause], [Circ2], [ThirdPartyConduct], [Conduct], [Para1], [Circ3], [Circ5], [Para2Circumstances], [Para2] plus composed [SexualActs]; none refer back to [SexualAssault]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.
- Composition by canonical name is acyclic: the composed operome is read once and does not reference this one back.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{AgainstRecognisableWill}	Element/Datum: the act is against the recognisable will of {Person}.?	Boolean
Q3	Session	{Coerced}	Element/Datum: {Actor} has coerced {Person}.?	Boolean
Q4	Session	{ConsentObtained}	Element/Datum: {Actor} has obtained the consent of {Person}.?	Boolean
Q5	Session	{Directs}	Element/Datum: {Actor} directs {Person}.?	Boolean
Q6	Session	{Exploits}	Element/Datum: {Actor} takes advantage of the circumstance.?	Boolean
Q7	Session	{HasVictimPerformOnActor}	Element/Datum: {Actor} has {Person} perform the act on {Actor}.?	Boolean
Q8	Session	{IntoPerforming}	Element/Datum: into performing the act.?	Boolean
Q9	Session	{IntoTolerating}	Element/Datum: into tolerating the act.?	Boolean
Q10	Session	{MentalCondition}	Element/Datum: {Person}'s mental condition.?	Boolean
Q11	Session	{MomentOfSurprise}	Element/Datum: a moment of surprise obtains.?	Boolean
Q12	Session	{Performs}	Element/Datum: {Actor} performs the act on {Person}.?	Boolean
Q13	Session	{Person}	Element/Datum: the other person (the victim).?	Party
Q14	Session	{PhysicalCondition}	Element/Datum: {Person}'s physical condition.?	Boolean
Q15	Session	{RestrictedInExpressing}	Element/Datum: {Person} is restricted in expressing their will.?	Boolean
Q16	Session	{RestrictedInForming}	Element/Datum: {Person} is restricted in forming their will.?	Boolean
Q17	Session	{Serious}	Element/Datum: serious.?	Boolean
Q18	Session	{Significantly}	Element/Datum: significantly.?	Boolean
Q19	Session	{SituationOfRisk}	Element/Datum: a situation obtains in which {Person} faces a risk of harm upon resistance.?	Boolean
Q20	Session	{ThirdPerson}	Element/Datum: a third party.?	Party
Q21	Session	{ThreatensWithHarm}	Element/Datum: {Actor} threatens {Person} with harm.?	Boolean
Q22	Session	{UnableToExpressContraryWill}	Element/Datum: {Person} is unable to express a contrary will.?	Boolean
Q23	Session	{UnableToFormContraryWill}	Element/Datum: {Person} is unable to form a contrary will.?	Boolean
Q24	Session	{VictimPerformsOnThirdPerson}	Element/Datum: {Person} performs the act on a {ThirdPerson}.?	Boolean
Q25	Session	{VictimToleratesByThirdPerson}	Element/Datum: {Person} tolerates the act by a {ThirdPerson}.?	Boolean

FLAGS

- SCOPE** Paragraph 1, the basic offence against the recognisable will; paragraph 2, the five exploitation and coercion circumstances. Paragraphs 3 to 9 (attempt, every aggravation including the rape definition in (6), and all sentencing ranges) struck entirely per the marked-up source as grading and consequences.
- TRANSLATION NOTE** The draft English layer of (1) and (2) renders “von ihr vornehmen lässt” as “causes them to be performed (on that person)”, which misreads the German: the modality is having the acts performed by the person on the actor. The source column carries the English as published; the German governs; the markup binds the published words to {HasVictimPerformOnActor}, which carries the German reading.
- CONDUCT CHAPEAU REUSED** Paragraph 2 repeats paragraph 1’s three modalities verbatim; [Conduct] ({Performs}, {HasVictimPerformOnActor}, {Directs} over the third-party pair) is consumed by both paragraphs (one variable per Merkmal).
- THE FIVE CIRCUMSTANCES** [Circ1] to [Circ5], disjoined in [Para2Circumstances]. {Exploits} is the shared verb of circumstances 1 to 4, each discriminated by its own object: the will-incapacity pair, the restriction complex, {MomentOfSurprise}, the risk situation. Circumstance 5 is {Coerced} over the coordinated objects {IntoPerforming} and {IntoTolerating}, by {ThreatensWithHarm} (rules 1, 2, 10).
- QUALIFIERS AS INLINE VARIABLES** {Significantly} qualifies the restriction in circumstance 2; {Serious} qualifies the harm in circumstances 4 and 5 (the same statutory term, “empfindliches Übel”, one variable), following the §171 {Grossly} and {Significant} pattern (rule 4).
- PROVISO AS A NEGATIVE CONDITION (RULE 8)** “unless the offender has obtained the consent of that person” in circumstance 2 is not encoded inside the leg; [Circ2] carries {ConsentObtained} is false, and the markup binds the proviso words to [Circ2] with the {ConsentObtained} block inside.
- SEXUAL ACT** [SexualActs] (§184h, by name) for every occurrence.
- TREATMENT** §177 is Human-awareness-tagged. The objective elements of (1) and (2) are encoded; recognisability of the contrary will, exploitation in fact and coercion in fact are heavily evaluative at the margin and the verdict escalates to a human in application.

